

PLD 2020 Sindh 1

Before Ahmed Ali M. Shaikh, C.J. and Mohammad Karim Khan Agha, J

GULZAR ALI and 3 others---Petitioners

Versus

NATIONAL ACCOUNTABILITY BUREAU through Chairman and others---Respondents

Constitutional Petitions Nos. D-5574, D-7099, D-7123 of 2018 and D-988 of 2019, decided on 6th March, 2019.

National Accountability Ordinance (XVIII of 1999)---

---Ss. 9(a)(vi),(b) & 25(b)---Constitution of Pakistan, Art. 199---Constitutional petition---Bail, grant of---Deposit of loss to exchequer in court---Effect---Petitioners were arrested by NAB authorities for causing loss to exchequer---Plea raised by petitioners was that they were willing to deposit amount in court if bail was granted---Validity---Plea of petitioners was distinguishable as they had not agreed unconditionally to repay all misappropriated amount to Government instead they wanted money to be held on trust for them and then returned if they were acquitted---If such arrangement was allowed in every such case, same would render S. 25(b) of National Accountability Ordinance, 1999, which dealt with 'plea bargain', redundant and there would be no need for accused to enter into plea bargain as he could simply deposit alleged misappropriated amount with court pending outcome of case against him under National Accountability Ordinance, 1999---If accused was acquitted he would get money back and if he was convicted after a lengthy trial he could then, if he then so desired, enter into plea bargain once he was taken into custody knowing strength of case against him---Such would defeat one of primary objectives of National Accountability Ordinance, 1999 which was recovery of ill-gotten wealth at earliest without need for prolonged trial---High Court declined to grant bail to petitioner as new ground alone of depositing loss to be held on account of pending disposal of reference was not maintainable---Petitioners were already found to be fully connected with commission of offences through previous bail dismissing orders---Constitutional petition was dismissed in circumstances.

Mumtaz Ali (unreported) Supreme Court order dated 17.10.2018; Asad Ahmad Khan (unreported); Shamraiz Khan v. State 2000 SCMR 157 distinguished.

Syed Muzafar Ali v. Chairman NAB 2016 PCr.LJ 1183 and Rai Mohammad Khan v. NAB 2017 SCMR 1152 ref.

Shaukat Hayat, Gul Fareen, Nasir Jahangir Rifat Sheikh and S.M. Iqbal for Petitioners.

K.A. Vaswani, Special Prosecutor NAB for the State.

Dates of hearing: 18th, 25th February, 2019.

ORDER

MOHAMMAD KARIM KHAN AGHA, J.---By this common order we propose to dispose of the post arrest bail petitions filed by the petitioners Gulzar Ali, Salman Mansoor, Syed Naveed and Umer Shahzad. All the petitioners are accused in National Accountability Bureau (NAB) Reference 50/2016 State v. Sharjeel Inam Memon and others for acts of corruption and corrupt practices under S.9 of the National Accountability Ordinance, 1999 (NAO) which reference is currently proceeding before the accountability courts at Karachi.

2. All the petitioners vide consolidated order of this court dated 25.10.2017 had their ad interim pre arrest bail recalled and were taken into custody on the same day. All the petitioners applied for post arrest bail to this court which was dismissed by this court on merits vide order dated 02-03-2018 where upon petitioners Gulzar Ali, Salman Mansoor and Umer Shahzad moved the Supreme Court for bail on merits. The Hon'ble Supreme Court vide order dated 19.04.218 allowed the petitioners to withdraw their petitions on the basis that if any fresh ground for bail arose they could approach this court again for post arrest bail and with regard to petitioner Gulzar Ali that he may approach this court on medical grounds again and this court shall consider any medical documents which he placed on record before deciding the same hence these petitions for post arrest bail.
3. The brief facts of the case as alleged in Reference No.50/16 State v. Sharjeel Inam Memon and others which was filed by NAB on 28-09-2016 against the petitioners and other co-accused concerned a financial scam by officials of the Information and Archives Department Government of Sindh(GOS) and various advertising agencies whereby the advertising agencies were appointed illegally and in violation of the relevant rules through a misuse of authority/failure to exercise authority by the government officials who mala fide, deliberately and in connivance with each other awarded contracts to advertising agencies at exorbitant rates which unduly benefited the advertising agencies who are beneficiaries in this case who acted in connivance with the government officials which lead to a colossal loss of approximately RS 5 Billion to the state exchequer hence the aforesaid reference was filed against the petitioners by NAB under the NAO on the grounds of corruption and corrupt practices.
4. The petitioners are all beneficiaries of the scam as alluded to in the above paragraph. Two of the petitioners Gulzar Ali and Salman Mansoor are directors of the advertising agency Adarts whilst the other two petitioners Umer Shazad and Syed Naveed are sole proprietors of media concerns who Adarts illegally sub let their contract with the GOS to.
5. Initially learned counsel for Gulzar Ahmed sought bail on medical grounds and to this effect took this court through various documents on record. Learned counsel however was not able to explain to us the extent of the petitioner's illness which these documents disclosed and as such he made application for this court to constitute a medical board to opine about petitioner Gulzar Ali's medical condition. During the course of his arguments however he withdrew his plea that bail should be granted to petitioner Gulzar Ali on medical grounds along with his application to constitute a medical board.
6. All the learned counsel for all the petitioners contended that they should be granted post arrest bail on the ground that they were prepared to deposit the amount of loss which had allegedly been caused to the State by their actions as determined by NAB with the registrar of this court until the final determination of the reference against them. In support of their contentions they placed reliance on order of Supreme Court dated 26.12.2018 in the case of Mumtaz Ali (unreported), order of Supreme Court dated 17.10.2018 in the case of Asad Ahmed Khan (unreported), Shamraiz Khan v. State (2000 SCMR 157) and Syed Muzafar Ali v. Chairman NAB (2016 PCr.LJ 1183)
7. On the other hand learned special prosecutor NAB opposed the grant of post arrest bail on the above grounds in that such a ground was not envisaged under the NAO.
8. We have heard the parties, gone through the record and considered the relevant case law.

9. The first point to note is that this is a mega corruption case which caused a loss of approx RS 5 Billion to the government exchequer and that the amount of loss caused by the petitioners amounted to approx RS. 23 crores. For offenses of corruption charged under the NAO (white collar crimes) the Hon'ble Supreme Court in the case of Rai Mohammed Khan v. NAB (2017 SCMR P.1152) has emphasized that the grant of bail in such cases must be construed strictly and rigidly even if, as in that case referred to above, the amount involved was on the lesser side being only approx RS 12M (as opposed to over RS 5 Billion as in this case) in the following terms at P.1154 para 7;

"Under the principle of law and justice, each bail petition is to be decided on its own merits and the law applicable thereto, however, this Court cannot remain oblivious of the undeniable fact that the tendency of corruption in every field, has become a threatening danger to the State economy, striking on its roots. The public money, allocated for social sector and economic well being of the poor people, is consistently embezzled/ misappropriated at a large scale and while the majority of the population is deprived of essential daily utilities, like pure drinking water, health care and education facilities, etc. It has become the foremost obligation of each and every institution, including the Judicator, to arrest this monster at this stage, before it goes out of proportion, posing threat to the very survival of the State and State economy, therefore, the Courts shall apply the Anti-Corruption laws somewhat rigidly, once in fact the case is made out, at bail stage, against the accused person. Distinction, however, is to be drawn between the ordinary criminal cases and of corruption on the above analysis and grounds, while dealing with bail matter to an accused person, charged for such like crimes and also at the time of conviction, once the case is proved against him then, Courts are not supposed to show any mercy by taking a lenient view in the matter of sentence."

10. Let us therefore consider the cases cited by the petitioners to consider whether they might be used as precedent for post arrest bail in this case.

11. In the case of Mumtaz Ali (Supra) with profound respect the NAB had no objection to the grant of bail based on the case of Shamraiz Khan (Supra) since the amount involved was relatively minor being only RS. 61 lacs. This case is therefore distinguishable from the case at hand where NAB has objected to the grant of bail and the amount is much greater being approx RS 23 crores.

12. The case of Shamriaz Khan (supra), which was cited by NAB in Mumtaz Ali's case (Supra) as a ground for not opposing the grant of bail in that case, is also in our view entirely distinguishable. In Shamraiz Khan's case (Supra) the case had been registered under Ss.409/467/468/471/477-A/109 of the P.P.C. and S.5 (2) of the Prevention of Corruption Act (II) 1947. None of these offenses under these Acts allowed the concept of plea bargain which is a unique provision under S.25 (b) NAO and thus the only option the accused had in that case was to return the misappropriated money unconditionally back to the food department from whom it had been misappropriated from in order to secure bail. In that case the rule of consistency was also applied as 17 other co-accused had also been granted bail in that case which is not the case in the instant case. Most significantly, Shamraiz Khan had agreed to return unconditionally the entire amount which he had misappropriated from the food department to the food department and as

such the loss was made good by the return of the funds although even then he still had to face trial in respect of the penal consequences for his illegal acts. The instant case is entirely distinguishable as the petitioners have not agreed unconditionally to repay all the misappropriated amount to the Government. Instead they want the money to be held on trust for them and then returned if they are acquitted.

13. In our view if we were to allow such an arrangement in every NAB case it would virtually render S.25(b) of the NAO which deals with plea bargains (PB) redundant as there would be no need for an accused to enter into a PB as he could simply deposit the alleged misappropriated amount with the registrar of this court pending the outcome of the criminal case against him under the NAO. If he was acquitted he would get the money back and if he was convicted after a lengthy trial he could then, if he then so desired, enter into a plea bargain once he was taken into custody knowing the strength of the case against him. This would defeat one of the primary objectives of the NAO which is the recovery of ill gotten wealth at the earliest without the need for prolonged trials.

14. For ease of reference S.25 (b) NAO reads as under:-

"25(a).....

(b) Where at any time after the authorization of investigation, before or after the commencement of the trial or during the pendency of an appeal, the accused offers to return to the NAB the assets or gains acquired or made by him in the course, or as a consequence, of any offence under this Ordinance, the Chairman, NAB, may, in his discretion, after taking into consideration the facts and circumstances of the case, accept the offer on such terms and conditions as he may consider necessary, and if the accused agrees to return to the NAB the amount determined by the Chairman, NAB, the Chairman, NAB, shall refer the case for the approval of the Court, or as the case may be, the Appellate Court and for the release of the accused."

15. Turning to the case of Asad Ahmed Khan (Supra), with the greatest respect and humility at our command, that case also has distinguishing features in that (a) no loss was caused to the State through the acts of the petitioner's whereas in this case a colossal loss has been caused to the State by the petitioner's and (b) that it was perceived that the son was being punished for the acts of the father whereas in this case all the petitioners are primary accused and even Salman Mansoor who was the son of Gulzar Ali as discussed in our earlier orders on merit was fully involved in the scam through actively participating in various meetings with the GOS functionaries with whom he was in connivance with and signing various documents on behalf of Adarts in connection with the scam so there is no question of him being punished on account of the sins of his father but only on account of his own wrong doing and (c) that the loss in that case was not colossal being only approx RS 1.3 crore whereas the loss in this case is colossal being approx RS 23 crore.

16. In the case of Syed Muzafar Ali (Supra) once again the NAB had no objection to the grant of bail (unlike in this case) and the amount involved was again not as colossal as in this case. Hence all the cases relied upon by the petitioners are distinguishable from the instant case based on their own particular facts and circumstances.

17. We would however observe that despite the distinctions in this case there may be some cases based on their own particular facts and circumstances coupled with additional relevant considerations which might justify the grant of bail by depositing the loss so caused especially if that amount is relatively minor keeping in view NAB's mandate to pursue mega corruption cases such as the instant case.

18. Thus, based on the particular facts and circumstances of this case especially bearing in mind that the petitions for post arrest bail have been dismissed on merits and the huge amount of loss caused to the exchequer we do not consider the new ground alone of depositing the loss to be held on account pending disposal of the reference a new ground which would justify the grant of post arrest bail to petitioners Salman Mansoor, Syed Naveed and Umer Shahzad who have already been found through our previous bail dismissing orders to be fully connected with the commission of the offenses as charged in the reference and as such the petitions for post arrest bail of petitioners Salman Mansoor, Syed Naveed and Umer Shahzad are dismissed.

19. In respect of petitioner Gulzar Ali who apart from his contention that he will deposit the amount of loss as determined by the NAB being RS.57,384,104 we find that he has other relevant additional grounds which tilt the grant of post arrest bail in his favour. Namely, that he is an old man approaching 80 years of age who is suffering from numerous quite severe medical conditions, as per his medical reports, which include cervical spondylitis, lung, kidney, blood and skin diseases and in addition is relatively infirm in that he needs assistance to walk and get about and also needs the use of a stick and very often a helper in this regard and as such on account of all of these factors when combined together we hereby grant him post arrest bail subject to him depositing the amount of loss which he caused to the exchequer being RS.57,384,104 with the Chairman NAB and furnishing solvent surety in the amount of RS.25 lacs (Rs.2.5 million) and PR bond in the like amount to the satisfaction of the Nazir of this court. The Ministry of Interior is directed to place his name on the ECL and a copy of this order shall be sent to the Secretary Ministry of Interior Government of Pakistan for compliance.

20. The trial court is directed to hold the trial on a day to day basis and not allow any adjournment on any flimsy ground (and in the case of an adjournment clearly write in the diary which defense counsel or, as the case may be, special prosecutor NAB is responsible for such adjournment and why the adjournment was granted) and complete the trial within 4 months of the date of this order. The office shall transmit a copy of this order to the concerned accountability court for compliance which shall submit a weekly progress report to the concerned High Court accountability court monitoring Judge through MIT II .

21. All the petitions stand disposed of in the above terms.

MH/G-24/Sindh Order accordingl

PLD 2020 Lahore 1

Before Jawad Hassan, J

AITEX PAKISTAN---Petitioner

Versus

GOVERNMENT OF PAKISTAN and others---Respondents

Writ Petition No.39800 of 2109, heard on 29th August, 2019.

(a) Associations with Charitable and Not for Profit Objects Regulations, 2018 ---

---Regln. 5---Foreign Companies Regulations, 2018, Regln. 6---Companies Act (XIX of 2017), S. 42---Non-Profit Organization ("NPO") and Non-Governmental Organization ("NGO")---Distinction--Generally, 'NPO' was an organization that operated on the principle that no member would receive profits from such organization, and such organization applied its surplus funds on the promotion of its objectives rather than distributing it among the members of such organization--On the other hand, 'NGO' was an association of persons that worked for promoting humanitarian objective instead of a commercial one, and was formed by ordinary citizens that operated autonomously/ independently of government---'NGO' and 'NPO' were two of the most common designations which worked towards improving human welfare and betterment of the society, and were often interchangeable.

Advanced Law Lexicon, Volume 3, published by Lexis Nexis ref.

(b) Policy for Regulation of International Non-governmental Organizations (INGOs) in Pakistan, 2015 [issued by the Ministry of Interior vide notification No.6/34/2015-PE-III dated 01-10-2015]---

---Cl. 2---Entities to which the Policy for regulation of International Non-governmental Organizations (INGOs) in Pakistan, 2015 applied stated.

Policy for Regulation of International Non-governmental Organizations (INGOs) in Pakistan, 2015 [issued by the Ministry of Interior vide notification No.6/34/2015-PE-III dated 01-10-2015] applied to entities that met the following criteria:

- (i) International Non-Governmental Organizations ("INGO") or International Non-Profit Organizations (INPOs) which may not be registered in their home countries as INGOs; which were part of the not for profit sector, and which undertook activities similar to typical INGOs;
- (ii) Entities which received foreign contributions or utilized foreign economic assistance to engage in various development programs in Pakistan;
- (iii) Private and self-governing entities which were separate and not controlled by the Government;
- (iv) Entities which were not receiving return profits generated to their owners or directors or staff; and
- (v) Registered organization with defined aims and objectives.

(c) Associations with Charitable and Not for Profit Objects Regulations, 2018---

---Regln. 5---Foreign Companies Regulations, 2018, Regln. 6---Policy for Regulation of International Non-governmental Organizations (INGOs) in Pakistan, 2015 [issued by the Ministry of Interior vide notification No.6/34/2015-PE-III dated 01-10-2015] ('the Policy')---Scope---International Non-Profit Organization (INPO) and International Non-Governmental Organization ("INGO") --- Registration and regulation---Liason office of a foreign based Association operating

in Pakistan---Petitioner was a liaison office of a foreign Association and was working in Pakistan--Contention of petitioner that it did not fall under the definition of an 'INGO', and was merely an "INPO", therefore, the 'Policy' for regulation of INGOs did not apply to it---Held, that nothing had been brought on record establishing that the foreign Association was controlled by its Government, and the petitioner had itself admitted that the foreign Association and the petitioner was a private research institute, therefore, for all intents and purposes, it could be stated that the foreign Association was operating as an autonomous body independent of the Government, and could also be categorized as an INGO---In such circumstances the Policy in question for INGOs was applicable to the petitioner, and the petitioner or the foreign Association was required to follow the mandatory provisions of the Policy---High Court directed that the petitioner was to follow the online application procedure under the Policy for its registration, which shall be decided by the Ministry of Interior and the relevant departments strictly within the stipulated period of sixty (60) days under the applicable laws; that in view of the prior functioning of the petitioner in Pakistan, the Government and its relevant functionaries would not obstruct the lawful business of the petitioner till the decision on the online application of the petitioner; that the Securities and Exchange Commission (SECP) was to formulate appropriate Regulations, after following the applicable laws including the 'Policy', which were applicable specifically to INGOs or INPOs---Constitutional petition was dismissed accordingly.

(d) Illegality ---

---Illegality could not be allowed to be perpetuated.

Raunaq Ali v Chief Settlement Commissioner PLD 1973 SC 236 and Ms. Shagufta Hashmat v. Federation of Pakistan through Secretary Cabinet Division 2018 PLC (C.S) 619 ref.

(e) Administration of justice---

---When law required a thing to be done in a specific manner that should only be done in that specific manner.

(f) Constitution of Pakistan---

---Art. 199---Constitutional jurisdiction of the High Court---Scope---Regulations made by the Government, interference in---Competent authority was at liberty to regulate its affairs unless such regulation was arbitrary, discriminatory or demonstrably irrelevant to the policy---Regulations could not be interfered on the grounds of mere technicalities.

Dossani travels Pvt. Ltd. v. Travels Shop (Pvt.) Ltd. PLD 2014 SC 1 ref.

Barrister Hassan Nawaz Shaikh for Petitioner.

Ms. Sadia Malik, Assistant Attorney General, Azmat Hayat Lodhi, Assistant Attorney General with Zulfiqar Ali, Director Board of Investment, Lahore and Ms. Iqra Anum, Section Officer (PE-III), Ministry of Interior, Government of Pakistan, Islamabad for Respondents.

Muhammad Naeem Akhtar Cheema, Legal Consultant for Secretary Primary and Secondary Health Department for Respondents..

Umair Ghafoor, Officer State Bank of Pakistan, BSL/Respondent No.4.

Syed Farhan Shah, Deputy Prosecutor, Competition Commission of Pakistan/Respondent No.5.

Barrister Umair Khan Niazi, Additional Advocate-General for Respondents.

Shehzad Ata Elahi, Advocate/Amicus Curiae assisted by Usman Virk for Respondents.

Hafiz Muhammad Talha and Muhammad Naveed, Advocates/Legal Advisor for SECP.

Date of hearing: 29th August, 2019

JUDGMENT

JAWAD HASSAN, J.---The Petitioner/Aitex Pakistan (the "Petitioner") has filed the instant Writ Petition (the "Petition") under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution") against the Secretary Interior, Ministry of Interior ("MOI") (Chairman, International Non-Governmental Organizations ("INGO"), the Board of Investment ("BOI"), the Securities and Exchange Commission of Pakistan ("SECP"), the State Bank of Pakistan ("SBP") and the Competition Commission of Pakistan ("CCP") impugning herein the refusal letter issued by the Respondent No.2/Director General, BOI against the application of the Petitioner for its registration as a Non-Profit Organization ("NPO") and has also sought interpretation of law regarding the regulatory jurisdiction in the matter.

I. PETITIONER'S ARGUMENTS

2. The learned counsel of the Petitioner, inter alia, submitted that the Petitioner is a liaison office of M/s. Asociacion De Investigacion De La Industria Textil (the "Spanish Association"), which is a Private Research Institute registered under the National Registry of Association, Spain, and is working in Pakistan through the Petitioner. The Spanish Association is a private technology centre dedicated to applied research and technological innovation, and performs the quality control tests and certifications which also help the Pakistani textile companies to improve their international business.

3. The Petitioner has contended that it was granted permission/ license by the Respondent No.2/BOI vide permission letter dated 30.11.2004 to establish a liaison office in Pakistan for three (3) years, which was subsequently extended till 30.11.2017. Further, when the Petitioner applied for renewal of permission on 19.02.2018, the Respondent No.2/BOI replied that since the Petitioner is a "non-profitable organization (NGO)", therefore the Petitioner should contact the Respondent No.1 /Secretary Interior, MOI (Chairman INGO). Therefore, the Petitioner immediately wrote letters dated 19.07.2018 and 03.12.2018 to the Respondent No.2/BOI by reiterating that the Petitioner does not fall within the category of INGOs and is merely a NPO.

4. It has also been argued that MOI has Policy for regulation of INGOs in Pakistan, therefore, the Petitioner has right to be treated as per Policy for regulation of INGOs in Pakistan issued vide notification No.6/34/2015-PE-III dated 01.10.2015 (the "Notification" or "Policy"), which includes NPOs. Further states that the Petitioner's application regarding registration is still pending before the Respondent No.1 since 16.05.2019, which has not been decided so far.

II. RESPONDENT'S ARGUMENTS.

5. Since it was pointed out that there is overlapping jurisdiction of certain regulators and non-clarity regarding permission from the concerned, regulating aforesaid foreign entities in Pakistan, therefore, notices were issued to all the Respondents to file their reports and para wise comments. The Respondents submitted their para-wise comments to the Petition and reiterated following positions:

A. MINISTRY OF INTERIOR (RESPONDENT NO. 1)

6. MOI admitted that it has received a manual application from the Petitioner for registration as an INGO on 2.5.2019. It was further stated that MOI has launched an online portal for registration of an INGO, who can apply through the same portal and its application is then forwarded to all stakeholders (i.e. Economic Affairs Division, Ministry of Foreign Affairs, Law and Justice Division, Federal Board of Revenue, SECP and the Security Agencies). Further, MOI has already guided the Petitioner vide its letter dated 19.6.2019 to apply through the online portal as per the Notification.

7. MOI further stated that the Notification regulates INGOs in Pakistan and an INGO Committee has also been notified in this regard, which has approved eight (8) areas of work i.e. vocational education and training, health, poverty alleviation, culture, environmental protection, natural disaster reduction and management, science and technology, and sports. INGO Committee has also finalized a standard Memorandum of Understanding ("MOU") to be signed between the Government of Pakistan and the respective INGO at the time of its registration, and a decision on the application, made through online portal, is then taken by such Committee on the basis of comments/input received from all the stakeholders.

B. BOARD OF INVESTMENT (RESPONDENT NO. 2)

8. BOI filed its para-wise comments and reiterated its stance that registration of foreign INGOs and NPOs is being dealt by MOI in light of the Notification. On these grounds, BOI prayed for its exemption to contest this Petition.

C. SECURITIES AND EXCHANGE COMMISSION OF PAKISTAN (RESPONDENT NO. 3):

9. SECP stated in its para-wise comments that the Petitioner being a Foreign Company's liaison office was registered with SECP on 10.1.2005. Section 441 of the Companies Act, 2017 (the "Act") clearly states that a "Foreign Company" shall not be entitled to bring any suit/legal proceedings, claim any set-off, and make any counter claim. The Petitioner has not approached the appropriate forum i.e. Government of Pakistan, Chairman INGO, Secretary Interior, Ministry of Interior etc., and has not resorted to remedies available i.e. Secretary Interior and the BOI appellate forums. The Petitioner has given contradictory statements because on one side, the Petitioner has claimed the regulatory jurisdiction of the Respondent No. 2 (paras 4 to 7) and on the other side, the same has been negated (Ground e). Further, SECP has prayed for dismissal of the Petition in view of statutory bar of Section 441 of the Act.

D. COMPETITION COMMISSION OF PAKISTAN (RESPONDENT NO. 5):

10. CCP submitted that it is only mandated with the exclusive statutory obligation to provide for free competition in all spheres of commercial and economic activity and to enhance economic efficiency and to protect consumers from anti-competitive behaviours under the Competition Act, 2010. Further, the Petition does not fall within the statutory mandate of CCP, and therefore, its name may be stuck-out from the array of the Respondents and an appropriate order may be passed in this regard.

III. AMICUS CURIAE'S ARGUMENTS

11. This Court appointed Mr. Shahzad Ata Elahi, Advocate as Amicus Curiae, who submitted his brief on bullet points and stated that the aforesaid foreign entities are being dealt with by MOI and

notified under the regulations i .e. (i) Foreign Companies Regulations, 2018 (the "Foreign Companies Regulations"), (ii) the Associations with Charitable and Not for Profit Objects Regulations, 2018 (the "NPO Regulations") and the Companies (Incorporation) Regulations, 2017 (the "Companies Regulations") made by the SECP under Section 512 read with Sections 42 and 43 of the Act. He further stated that the issue in hand is regarding functioning of NPOs which cannot be dealt with by the Companies Regulations because Regulation 1(3) exempted the NPOs. Further states that there is no explicit mechanism and uniform policy regarding the registration and regulations of aforementioned foreign entities (INGOs/NGOs, INPOs/NPOs, Companies, Firms and Associations) and obtaining the NOC from MOI without the coordination of its regulator is creating hurdle to encourage the investment in Pakistan.

IV. BRIEF FACTS

12. On 30.11.2004, BOI has given permission for three (3) years to the Petitioner to establish a liaison office in Pakistan at Karachi by the Spanish Association to provide services to textile companies for research, development, improvement of quality, certifications etc. subject to various conditions, including that no commercial/trading activities shall be undertaken in Pakistan, no remittance facility shall be allowed nor will it be claimed, and a company shall be registered within thirty (30) days with SECP. Subsequently, on 16.3.2016, BOI renewed and extended the permission of liaison office to the Spanish Association to continue operations of liaison office in Pakistan at Lahore and sub-office at Karachi upto 30.11.2017; and stated that the terms and conditions of the prior permission letter dated 30.11.2004 shall remain intact.

13. On 19.2.2018, the Petitioner asked BOI to renew the permission for further period of five (5) years for its liaison office in Pakistan, and also sent a letter dated 16.4.2018 providing clarifications after email of BOI dated 11.4.2018. On 2.5.2018, BOI wrote to the Petitioner that it is not a company and is a "non-profit organization (NGO)" which is dealt by MOI, and therefore, requested the Petitioner to approach MOI.

14. On 19.7.2018, the Petitioner informed BOI that it does not fall in category of NGOs, and is a Spanish non-profit association, and the liaison office is to assist its head office with its customers in Pakistan. On 3.12.2018, the Petitioner further informed BOI that it is not an INGO, and requested to extend such permission. Moreover, on 25.4.2019, the representative of the Petitioner sent a letter to Secretary Interior (Chairman INGO Committee) explaining the legal position in view of the Notification. Similarly, on 16.5.2019 and 27.5.2019, representative of the Petitioner again reminded the Secretary Interior about the same.

15. On 19.6.2019, MOI informed the representative of the Petitioner that registration cases of INGOs are processed through online portal to make the registration process transparent and requested them to apply for their INGO registration through online portal.

V. MOOT POINT

16. The sole argument of the Petitioner is that it does not fall under the definition of INGO, and is merely an International Non-Profit Organization ("INPO"), and therefore, the Notification providing the Policy for Regulation of INGOs in Pakistan does not apply to it. In each instance, the Petitioner has highlighted that BOI is the regulatory body to grant the extension/permission for

establishment of a branch office of an INPO; however, in Ground (e) of the Petition, the Petitioner has itself negated the same.

17. On the other hand, the concerned Respondents have repeatedly stated their position that the Petitioner is an INGO and is regulated by MOI through the Notification, and there is a mechanism available for its registration through an online portal made specifically for this purpose.

18. In view of the above, the moot questions arising from the above arguments requiring determination are as follows:-

- (1) Whether the Spanish Association, being an NPO comes within the ambit of an INGO?
- (2) Whether being an NPO, Spanish Association is required to be registered as per the Notification?
- (3) Whether earlier renewal of license by Respondent No.1 provides a fresh ground to the petitioner for further renewal?
- (4) Whether the Spanish Association is required to follow the procedure provided under the Notification for its registration or renewal of permission for establishment of a liaison office in Pakistan?

VI. DIFFERENCE BETWEEN NGO AND NPO

19. No law has been brought on record which provides clear distinction between an NGO and NPO. Section 2(36) of the Income Tax Ordinance, 2001 defines "non-profit organization"

- (36) "non-profit organization" means any person other than an individual, which is -
- (a) established for religious, educational, charitable, welfare or development purposes, or for the promotion of an amateur sport;
 - (b) formed and registered under any law as a non-profit organization;
 - (c) approved by the Commissioner for specified period, on an application made by such person in the prescribed form and manner, accompanied by the prescribed documents and, on requisition, such other documents as may be required by the Commissioner;
- and none of the assets of such person confers, or may confer, a private benefit to any other person;

Furthermore, meanings of a word can be understood from a dictionary because as held by Hon'ble Supreme Court in a case cited as "MUHAMMAD IJAZ-UL-HAQ v. EXECUTIVE DISTRICT OFFICER" (2006 SCMR 989) wherein it was held as under:-

"It is settled principle of law that in case-the word is not defined in the rules, then the meaning of the word must be understood as defined in English Dictionary. In other words the meaning of dictionary is relevant to understand intention of the policy maker as it is an elementary principle of interpretation of statutes that when a particular word is not defined in a statute, Courts are to give it the natural plain dictionary meaning and that where the meaning is supposed to depict the intention of the law-makers."

20. So to understand the true meanings of these terms, we can seek guidance from a legal dictionary. In Advanced Law Lexicon, Volume 3, Published by LexisNexis Non-governmental Organization and Non-profit organization have been defined at Pages 3265 and 3270 respectively, in following words:

Non-Government Organization (NGO):

A non-profit making organization in the private sector that assists developing countries through aid (financial and material), and the provision of skilled personnel and training.

A non-profit group or association organized outside of institutionalized political structures to realize particular social objectives (such as environmental protection) or serve particular constituencies (such as indigenous peoples). NGO activities range from research, information distribution, training, local organization, and community service to legal advocacy, lobbying for legislative change, and civil disobedience. NGOs range in size from small groups within a particular community to huge membership groups with a national or international scope.

Organizations formed by the people and of people outside government; nonprofit, human rights, humanitarian aid and grassroot organizations. (Human Rights).

Non-Profit Making Organization (NPO).

"Company or organization that has a legal obligation not to make a profit. The term is most usually applied to Registered charities.

The categorization of an organization as 'non-profit-making organization' should be based on all the organization's activities. Classification of an organization as "non-profit-making" should depend on its aim which, unlike a commercial undertaking, should not be to achieve profits from its members"

21. So, definition of term NGO clearly transpires that words "A non-profit making organization" is used to define an NGO. Generally, NPO is an organization that operates on the principle that no member will receive profits from such organization, and such organization applies its surplus funds on the promotion of its objectives rather than distributing it among the members of such organization. On the other hand, NGO is an association of persons that works for promoting humanitarian objective instead of a commercial one, and is formed by ordinary citizens that operates autonomously/independently of government. NGO and NPO are two of the most common designations which work towards improving human welfare and betterment of the society, and are often interchangeable.

VII. THE NOTIFICATION AND ITS APPLICABILITY

22. The Notification provides the Policy for Regulation of INGOs in Pakistan, and regulates the registration, working, functioning, monitoring and other related aspects pertaining to all types of INGOs functioning in Pakistan. This Notification has been notified in order to facilitate and streamline the registration and functioning of INGOs contributing to socio-economic development in Pakistan while ensuring the obedience of the relevant laws and norms of Pakistan; and to encourage INGOs to build a synergistic relationship with the Government and private sector, while ensuring efficient execution of their programs and activities in the best public interest. This enables INGOs to receive legitimate foreign contributions or foreign economic assistance through legal channels and appropriately utilize these financial resources on the agreed areas of public welfare.

23. Clause 2 of the Notification provides the scope and applicability of the Notification

2. SCOPE OF THE POLICY

2.1 This Policy will have sole jurisdiction over all types of International Non-governmental Organizations (INGOs) (including not-for-profits that may not be registered in their home

countries as INGOs but are still, part of the not-profit sector and undertake activities similar to typical INGOs) receiving foreign contributions or utilizing foreign economic assistance to engage in various development programs in Pakistan.

2.2 To be covered under this Policy, an INGO should be:

- * A private entity i.e. separate from the Government.
- * Not receiving return profits generated to their owners or directors or staff.
- * Self-governing i.e. not controlled by the Government.
- * A registered organization with defined aims and objectives.

24. In other words, the Notification applies to such entities which meet the following criteria:

- (1) INGOs, or INPOs which (i) may not be registered in their home countries as INGOs, (i) are part of the not-profit sector, and (iii) undertake activities similar to typical INGOs;
- (2) receiving foreign contributions or utilizing foreign economic assistance to engage in various development programs in Pakistan;
- (3) private and self-governing entities which are separate and not controlled by the Government;
- (4) entities which are not receiving return profits generated to their owners or directors or staff
- (5) registered organization with defined aims and objectives

25. Since the Petitioner has itself claimed it to be a non-profit organization, it means that applicability of above clauses (1)(ii) and (2) to (5) is not disputed. Therefore, the only question that remains to be determined now is that whether the Spanish Association is controlled by the Government or not. It is pertinent to note that nothing has been brought on record establishing that the Spanish Association is controlled by its Government, and the Petitioner has itself admitted in the Petition as well as in arguments that the Spanish Association and the Petitioner is a Private Research Institute. Therefore, for all intents and purposes, it can be stated that the Spanish Association is operating as an autonomous body independent of the Government, and can also be categorized as an INGO. Therefore, the Notification is applicable to the Petitioner, and the Petitioner or the Spanish Association is required to follow its mandatory provisions, in that, in clause 2.1 of the Notification, words "including not-for-profits" have specifically been used and as per golden rule of interpretation, words and phrases used in a law/statute/notification should be read keeping in view their plain meaning.

26. Be that as it may, Clause 4.1 of the Notification requires INGOs, which are receiving foreign contributions (funds, materials and services) emanating from outside Pakistan or utilizing foreign economic assistance, to get its prior registration exclusively with MOI. Further, Clause 4.5 of the Notification requires all existing INGOs in Pakistan to apply for fresh registration on the newly introduced electronic version of the registration form, within sixty (60) days from the date of proclamation of this Policy. Clause 4.8 of the Notification allows INGO to apply for renewal of its registration four (4) months prior to expiry of registration, and under Clause 4.9 of the Notification, previously registered INGOs are allowed to continue their operations for six (6) months or until final decision on their applications for fresh registration.

27. Clause 4.4 of the Notification constitutes an INGO Committee for approving registration of INGOs, which is chaired by the Secretary Interior, MOI, to facilitate, streamline and monitor the working of INGOs. On 14.3.2019, this INGO Committee has been re-constituted which include total of nine (9) members, having following Terms of References:

- (1) Scrutinize and decide application and documents received online from intending INGOs, in the light of Policy for Regulation of INGOs in Pakistan, 2015 and Memorandum of Understanding between the Government and INGOs within one (1) month; and
- (2) Require missing or additional information from the applicant, if necessary

28. This Committee is required to meet as and when required, with the permission of the Chairman of the Committee, and recommendations of the Committee are to be submitted to the Minister of Interior for approval.

29. Clauses 4.6 and 4.7 of the Notification requires the INGO Committee to make scrutiny of applications within a period of sixty (60) days, and then approve/register INGOs for specific field(s) of work and specified location(s) or areas of operation, after consultation with the relevant Federal and Provincial authorities, and in line with their needs and national priorities of Pakistan. Similarly, subject to approval, INGO are also required to sign a Memorandum of Understanding (MOU) with the Government of Pakistan for a period upto three (3) years from the date of signatures (Clause 5.1), and a draft MOU has also been prepared/notified in this regard.

30. The Notification has also provided a right of appeal to the cases of cancellation of registration (Clause 7.1), and any INGO having grievance against the order of the INGO Committee, has been provided with a right to file representation within ninety (90) days to a Special Ministerial Committee to be constituted and notified by the Government, whose decision is final (Clause 7.2).

VIII. OTHER LAWS

31. SECP has notified the Foreign Companies Regulations, 2018 under Section 512(1) of the Act, which provides the detailed procedure for registration of foreign companies. Section 2(1)(35) of the Act defines the Foreign Company as follows:

(35) "foreign company" means any company or body corporate incorporated outside Pakistan, which-

(a) has a place of business or liaison office in Pakistan whether by itself or through an agent, physically or through electronic mode; or

(b) conducts any business activity in Pakistan in any other manner as may be specified

Regulation 1(3), however, has excluded the applicability of these regulations to NPOs

32. Similarly, SECP has also notified the Associations with Charitable and Not for Profit Objects Regulations, 2018 under Section 512 read with Sections 42 and 43 of the Act, which provides the method and procedure for registration etc. of companies licensed under Section 42 of the Act. Section 42 of the Act provides as follows:

42. Licencing of associations with charitable and not for profit objects.-(1) Where it is proved to the satisfaction of the Commission that an association is to be formed as a limited company-

(a) for promoting commerce, art, science, religion, health, education, research, sports, protection of environment, social welfare, charity or any other useful object;

(b) such company-

- (i) intends to apply the company's profits and other income in promoting its objects; and
- (ii) prohibits the payment of dividends to the company's members; and
- (c) such company's objects and activities are not and shall not, at any time, be against the laws, public order, security, sovereignty and national interests of Pakistan, the Commission may, by licence for a period to be specified, permit the association to be registered as a public limited company, without addition of the word "Limited" or the expression "(Guarantee) Limited", to its name.

However, the applicability of these Regulations has not been specifically extended to INGOs or INPOs.

33. As far as earlier renewal of grant of permission/license to the petitioner by the Respondent No.2/BOI, is concerned, it is settled law that an illegality cannot be perpetuated. Reliance is placed on the judgment of Hon'ble Supreme Court in "RAUNAQ ALI v. CHIEF SETTLEMENT COMMISSIONER" (PLD 1973 SC 236) in which it has held that "The Courts would refuse to perpetuate, in such circumstances, something which would be patently unjust unlawful. Further in "Ms. SHAGUFTA HASHMAT v. FEDERATION OF PAKISTAN through Secretary Cabinet Division" (2018 PLC (C.S.) 619) the Court has held that "an illegality cannot be pleaded as a ground for discrimination, nor can it be allowed to be perpetuated while exercising powers under Article 199 of the Constitution.

34. Furthermore, as per arguments of learned counsel for the Petitioner, the Petitioner has applied to the Respondent No.1 for registration and its application is still pending. Perusal of para-wise comment of respondent No.1 /MOI transpires that respondent No.1/MOI has received a manual application while petitioner is required to apply online through online portal launched by MOI. It is settled law that when law requires a things to be done in a specific manner that should be only done in that specific manner.

35. Lastly, the competent authority is at liberty to regulate its affairs and unless such regulation is arbitrary, discriminatory or demonstrably irrelevant to the policy, which the legislature is free to adopt, cannot be interfered on the grounds of mere technicalities. Guidance is sought from the case law reported as "DOSSANI TRAVELS PVT. LTD v. TRAVELS SHOP (PVT) LTD" (PLD 2014 SC 1) " in which Hon'ble Supreme Court has held that "a bare perusal of Article 18 would show that the right of freedom of trade, business or profession is not an absolute right rather it is qualified by the expression, "subject to such qualifications, if any, as may be prescribed by law" and there are three exceptions which stipulate: (a) the regulation of any trade or profession by a licensing system; (b) the regulation of trade, commerce or industry in the interest of free competition therein; and (c) the carrying on, by the Federal Government or a Provincial Government, or by a corporation controlled by any such Government, of any trade, business, industry or service, to the exclusion, complete or partial, of other persons

36. In view of the above mentioned circumstances and the applicable laws, the instant Petition is hereby dismissed being devoid of merits and the Petitioner is directed to follow the online application procedure under the Notification for its registration, which shall be decided by the MOI and the relevant departments strictly within the stipulated period of sixty (60) days under the

applicable laws. The Petitioner shall make this application, if so advises, within two (02) months of passing of this judgment.

37. Meanwhile, in view of the prior functioning of the Petitioner in Pakistan, the Respondents shall not obstruct in the lawful business of the Petitioner till the decision on the application of the Petitioner under the above para.

38. Further, SECP is also directed to formulate appropriate Regulations, after following the applicable laws including the Notification, which are applicable specifically to INGOs or INPOs as it will create discrimination to foreign entities to do business in Pakistan in order to attract and facilitate foreign investment in Pakistan for the future of its economy.

MH/A-84/L Petition dismissed.

PLD 2020 Peshawar 1

Before Waqar Ahmad Seth, C.J. and Abdul Shakoor, J

MASOOM JAN---Petitioner

Versus

FEDERATION OF PAKISTAN through Secretary Ministry of Interior, Islamabad and 4 others---Respondents

C.M. No.2224-P of 2019 in Writ Petition No.5265 of 2018, decided on 5th November, 2019.

(a) Constitution of Pakistan ---

---Art. 199---Earlier judgment of Bench consisting of equal Judges of the High Court---Binding effect---Constitution of a Larger Bench---Scope---When a subsequent Bench of the High Court comprising of same numbers of Judges, did not wish to agree with the view of earlier Benches on the same point then instead of giving a different view, it had to request for the constitution of Larger Bench to revisit the earlier view of the Court---Wisdom behind honouring the earlier view of the Benches of the same High Court by the subsequent Bench on the same point of law, was to maintain harmony in the decisions of the Court on the same point of law---If, a Bench of equal numbers of Judges, was permitted to give a different view than the earlier view of the Bench of equal numbers of Judges on the same point of law, it would certainly create chaos and confusion, not only for the public at large, but also for the Courts, subordinate to the High Court.

(b) Pakistan Army Act (XXXIX of 1952)---

---S. 97---Constitution of Pakistan, Art. 199---Decision of Military Courts/Criminal Courts---Constitutional jurisdiction of the High Court to interfere in such decision---Scope---High Court, in exercise of its judicial review under Art.199 of the Constitution had the mandate to positively interfere with the decisions of the Criminal Courts/Military Courts, against which no right of appeal was available to the accused/convicts, if the case of prosecution was based on no evidence or insufficient evidence, was void, coram non-judice, without jurisdiction and based on mala fide or malice in law.

(c) Administration of justice--

---Constitution of High Court Benches---Scope---(Peshawar) High Court Rules and Orders---Constitution of Larger Bench---Scope---No provision existed either in Peshawar High Court Rules or Civil Procedure Code, 1908, which may give right to a party to a case to make a request for the constitution of Larger Bench.

Qazi Babar Irshad, Additional Attorney General, Shumail Ahmad Butt, Advocate-General and Amir Javed, Advocate on behalf of applicants/respondents Nos.1, 2, 3 and 5.

Zia Ur Rehman Tajik, Shabbir Hussain Gigyani, and Naveed Akhtar for Petitioners in main writ petitions.

ORDER

ABDUL SHAKOOR, J.--Through this application, applicants/ respondents Nos.1, 2, 3 and 5, have prayed for the constitution of Larger Bench in the main writ petition and petitions connected therewith, to give an independent view in it, since Division Bench, headed by the Hon'ble Chief Justice in the case of "Abdul Rasheed v. Federation of Pakistan and others" (decided on 18.10.2018), has taken a view altogether different than the one earlier expressed by 21 different

Benches of this Court in 24 cases involving the same points as were involved in the aforesaid case of Abdul Rasheed. It was also made a point for the constitution of Larger Bench that previously Division Benches of this Court, while delivering the judgments in similar cases, have held that it lacked the jurisdiction to question the verdicts of Field General Court Martial passed under the Pakistan Army Act, 1952.

2. Learned Additional Attorney General, learned Advocate General, Khyber Pakhtunkhwa and Mr. Amir Javed, Advocate, appearing on behalf of applicants/respondents Nos.1, 2, 3 and 5 in support of their prayer made in the instant application for the constitution of Larger Bench in the aforesaid writ petition and petitions connected therewith, have argued, the Division Bench, headed by the Hon'ble Chief Justice, while acquitting the accused/convicts in the above referred case (Abdul Rasheed v. Federation of Pakistan and others) and connected matters therewith; who were convicted by the Field General Court Martials under the Pakistan Army Act, 1952 has not taken note of 24 decisions of almost 21 Benches of this Court, wherein, in similar cases having the same facts, in view of limited scope of the judicial review mandated under Article 199 of the Constitution of Pakistan, 1973, in the face of repeated admissions of the guilt made by the convicts, culminating in the one before the Court Martial, have observed, it would not be appropriate for this Court to interfere in the impugned conviction recorded and sentence awarded by the Field General Court Martials under the Pakistan Army Act, 1952. It is, by now, well settled through the judicial pronouncements of the apex Court that earlier judgment of Bench of equal Judges of the High Court on the same point of law was binding on the subsequent Bench, and if the subsequent Bench intends to take a different view, then it has to make a request for the constitution of Larger Bench, however, with all respect and humility, the Bench, headed by the Hon'ble Chief Justice, has given a different verdict than the verdicts of the earlier Division Benches of this Court, on the same very point, therefore, it has become essential, a Larger Bench be constituted for an independent view in the aforesaid writ petition and petitions connected therewith. Since the same will resolve the controversy of different opinions of the Benches of this Court in similar matters, decided by the Military Courts. In support of their contention, they relied upon the cases "Multiline Associates v. Ardeshir Cowsjee (PLD 1995 SC 423), Ardeshir Cowsjee v. Karachi Building Control Authority (KMC) (1999 SCMR 2883), Atma Ram v. State of Punjab (AIR 1959 SC 519 ref), M/s. WAK Limited Multan Road, Lahore v. Collector Central Excises and Sales Tax, Lahore (Now Commissioner Inland Revenue LTU, Lahore) (2018 SCMR 1474), Muhammad Aamir Khan v. Government of Khyber Pakhtunkhwa through Senior Member Board of Revenue, Khyber Pakhtunkhwa and others (2019 SCMR 1021) and Shafqat @ Shafaat v. The State (PLD 2019 SC 43).

3. On the other hand, learned counsel appearing on behalf of the petitioner of the main petition and petitioners of the connected petitions, vehemently opposed, the instant application being based on mala fide and not maintainable and prayed for its dismissal with costs. They, in support of the point of mala fide, pointed out, the Bench, headed by the Hon'ble Chief Justice had been stressing to the applicants/respondents to argue the case but they have avoided it on the one pretext or the other. On 19.03.2019, applicants/respondents were given last opportunity by the Bench to produce the relevant record regarding conviction of the accused/convicts for the examination of their

counsel on 25.05.2019 positively, failing which the matter would be heard on the available record on 28.05.2019. However, on 28.05.2019 instead of submitting the requisite record on the basis of which conviction was recorded against the accused/convicts of the aforesaid cases, applicants/respondents only submitted the comments. As the comments so filed were not supported by the sworn affidavit, therefore, they were directed by the Bench to submit the said comments along with sworn affidavit on the next date of hearing. After the receipt of comments, the case was fixed for hearing on 04.09.2019 and applicants/respondents' counsel instead of arguing the case, sought further time. However, the Bench adjourned the matter with the condition that it will be decided on 01.10.2019 on the basis of written arguments of the applicants/respondents and arguments of the counsel of the accused/convicts of the above petitions. On 01.10.2019, the applicants/respondents, instead of submitting written arguments, as per the direction of the Bench dated 04.09.2019, filed the instant application for the constitution of Larger Bench. This conduct of the applicants/respondents is more than sufficient in proving, the instant application is filed with mala fide intention to delay the disposal of the above writ petitions which are pending disposal since long. In support of the point of non-maintainability of the instant application, it was contended, there is no provision in the Peshawar High Court Rules or Civil Procedure Code, 1908, which may give a right to party of case to file an application before the Court for the constitution of Larger Bench; and thus, the instant application is liable to be dismissed on this score alone.

4. We have seriously considered the submissions of the learned counsel of the parties and carefully gone through the judgment passed by the Bench of this Court in the case of "Abdul Rasheed v. Federation of Pakistan and others" decided on 18.10.2018 and earlier 24 judgments of this Court, probably, rendered by 21 different Benches.

5. No doubt, it is well settled principle, when a subsequent Bench of the High Court comprising same numbers of Judges, does not wish to agree with the view of earlier Benches on the same point then instead of giving a different view, it has to request for the constitution of Larger Bench to revisit the earlier view of the Court. The wisdom behind to honor the earlier view of the Benches of the same High Court by the subsequent Bench on the same point of law, is to maintain harmony in the decisions of the Court on the same point of law. If, a Bench of equal numbers of Judges, is permitted to give a different view than the earlier view of the Bench of equal numbers of Judges on the same point of law, it will certainly create a chaos and confusion, not only for the public at large, but also for the Courts, subordinate to the High Court. Since, Courts subordinate to the High Court will be unable to follow different views of the High Court on the same point of law as guiding principle for resolution of the controversy arising in the cases on the same point. Perusal of the judgment dated 18.10.2018 passed in the case of Abdul Rasheed would show that in it, no different view has been expressed than the view of earlier Benches of this Court, as submitted by the applicants/respondents. It has exercised the jurisdiction of judicial review, keeping in view the record, came before it relating to the cases of accused/convicts decided by the Military Courts. As, it is settled principle, High Court, in exercise of its judicial review under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, has the mandate to positively interfere with the decisions of the Criminal Courts/Military Courts, against which no right of appeal is available to the accused/convicts. If the case of prosecution was based on no evidence or insufficient

evidence, void, coram non-judice, without jurisdiction and based on mala fide or malice in law. A close examination of the earlier judgments of the Benches of this Court would show that there was no such material before them, which came in the case of Abdul Rasheed and cases connected therewith. Hence, they have declined to interfere with the conviction recorded and sentence awarded to the convicts by the Military Courts. Whereas, the Bench decided the case of Abdul Rasheed v. Federation of Pakistan and others connected cases, has summoned the complete record of the Military Courts on the basis of which it has recorded the conviction of the accused/convicts and accordingly awarded them sentences. Examination of the said record revealed to the Bench that questions put to all the accused-persons by the Military Courts were one and the same with exactly the same answers in all cases. Statements made by the accused-persons show that they spoke what they were briefed in the Internment Center, as it was next to impossible, the accused-persons, after remaining in the Internment Center for years, could remember the exact date, time and minute of the alleged occurrence in which they were convicted. Proceedings, before the Military Courts, infact, were a complete prosecution show and accused/convicts were denied their fundamental right of engaging a private counsel of their choice at their own expense. It was also observed by the Bench, nothing on the record showed that during trial, families of the accused/convicts who frequently requested for meeting with them in the Internment Center were ever informed or had the knowledge of the trial proceedings. The alleged confessional statements made by the accused/convicts without any independent advice after months/years of confinement with Military Courts and Internment Center, cannot be made a base for awarding them a sentence of capital punishment. All this led the Bench to conclude that it, in view of the aforesaid principle of judicial review can interfere with the conviction recorded and sentences awarded to the accused/convicts by the Military Courts.

6. The conduct of the applicants/respondents which has been pointed out by the learned counsel of the petitioners is showing, they have filed the instant application simply to linger on the matters pending adjudication before this Court for its disposal since long. It is also worth to mention here, applicants/respondents since the admission of the aforesaid petitions till 27.09.2019 has never made a request for the constitution of Larger Bench. When they were finally directed by the Bench to submit their written arguments on 01.10.2019 for the disposal of the aforesaid cases then they sprung into action for filing the aforesaid application for the constitution of Larger Bench. We fully agreed with the contention of the learned counsel of the accused/convicts that there is no provision either in Peshawar High Court Rules or Civil Procedure Code, 1908, which may give a right to party of a case to make a request for the constitution of Larger Bench. It is also not out of context to mention here, this Court till date has neither heard the arguments of the learned counsel of the parties in the aforesaid writ petition and petitions connected therewith, nor a situation has arisen wherein it could examine the record. As, till date, the applicants/respondents have not produced the record of the Military Courts on the basis of which it has recorded conviction of the accused/convicts of the petitions pending disposal. Thus, no question of constitution of Larger Bench arises.

7. Apart from the above, it is a matter of record, applicants/ respondents have already challenged the decision of this Court rendered in the case of Abdul Rasheed and cases connected therewith

before the apex Court. The apex Court, after entertaining the appeals of the applicants/respondents, was pleased to suspend the operation of the judgment rendered by this Court in the case of Abdul Rasheed and cases connected therewith. When such being the case, we understand, this Court cannot constitute a Larger Bench in the case, which's operation stood suspended by the order of the apex Court viz-a-viz the judgments rendered by the earlier Benches of this Court.

8. For what has been discussed above, we do not see any reason for the constitution of Larger Bench as prayed for by the applicants/respondents Nos.1, 2, 3 and 5. Accordingly, the instant C.M. is dismissed, being based on mala fide and not maintainable.

9 Main writ petition and petitions connected therewith are adjourned to 26.11.2019 for final arguments. Till the date fixed, interim order granted in all the cases shall continue.

10. It may be noted, no further adjournment shall be granted in the aforesaid cases to anyone on any ground on the date fixed. Copy of this order be placed on the connected writ petitions.

MWA/276/P Order according

PLD 2020 Balochistan 1

Before Jamal Khan Mandokhail and Rozi Khan Barrech, JJ
CHAIRMAN, NAB through Prosecutor General---Appellant

Versus

MUNAWAR MASIH and another---Respondents

Criminal Ehtesab Appeal No.14 of 2019, decided on 9th August, 2019.

(a) National Accountability Ordinance (XVIII of 1999)---

---Ss. 15, 25 & 32---Criminal Procedure Code (V of 1898), S. 265-K---Plea bargain---Appreciation of evidence--- Determination of liability, responsibility of---Application under S.265-K, Cr.P.C. filed by accused was converted into plea bargain application by Trial Court and same was allowed on basis of liability determined by Trial Court---Validity---Plea bargain was offer and confession of accused that he received corrupted money by corruption and corrupt practice---Such accused was liable to be convicted for disqualification for a period of ten years under S.15 of National Accountability Ordinance, 1999---Accused neither filed application for plea bargain before NAB nor the Chairman NAB approved plea bargain of accused---Trial Court directly converted application filed by accused under S.265-K, Cr.P.C. into application under S.25 of National Accountability Ordinance, 1999 for plea bargain and accepted same as plea bargain--Application of accused before Trial Court to fix his liability was not maintainable---Trial Court had no power to fix liability and direct the Chairman NAB to accept the same---Fixing of amount of liability was in discretion of the Chairman NAB and Trial Court had no role in such respect---High Court set aside order passed by Trial Court and remanded matter to proceed from stage at which case stood when application of accused under S.265-K, Cr.P.C. was decided---Appeal was allowed accordingly.

The State through Advocate-General, Sindh High Court of Karachi v. Raja Abdul Rehman 2005 SCMR 1544 rel.

(b) Administration of justice---

---Doing of a thing---Principle---Where procedure has been provided for doing a thing in a particular manner that thing should be done in that manner and in no other way or it should not be done at all---Such impliedly prohibits doing of a thing in any other manner, compliance for such thing in no way could be either ignored or dispensed with.

Ch. Mumtaz Yousaf, DPG along with Jaffar Raza, ADPG for National Accountability Bureau (NAB) for Appellant.

Shahid Javed for Respondents.

Date of hearing: 22nd July, 2019.

JUDGMENT

ROZI KHAN BARRECH, J.---This matter is listed for Kacha Peshi and during hearing with consent of the parties it was agreed that the matter would be heard and decided at Kacha Peshi stage.

This appeal has been filed by the State through Prosecutor General, NAB against the order dated 26.03.2019 ("impugned order") passed by the Accountability Court-I, Quetta ("trial court"),

whereby the application filed by respondent No.1 under Section 265-K, Cr.P.C. was converted into plea bargain application and was accepted by the trial court.

2. Briefly stated the facts, relevant for disposal of this appeal are that one Arshad Habib the then Divisional Superintendent Post

Offices Quetta Division, Quetta lodged a complaint vide letter No.1-3/5/2001- 2002 dated 10th June 2002 before the Director FIA Quetta for registration of a case against the accused/respondent namely Munawar Masih, ex-Postmaster Shelia Bagh Post Office. On the direction of Director FIA an inquiry was initiated into the matter and on finalization of the same, case was registered vide FIR No. 3 of 2003 under Sections 402, 420, 471, 477-A, 109, P.P.C. read with section 5(2) of the Act-II, 1947 against the accused/respondent, who had allegedly misappropriated an amount of Rs.14,40,570/- pertaining to money orders issued from the said post office, but the amount received against subject money orders was not credited in the relevant account. On merger of crime wing of FIA into NAB, the case was transferred to NAB Balochistan and the investigation of case was authorized by Director General NAB Balochistan on 26th June 2005.

3. After completion of inquiry/investigation Reference No.7 of 2007 was filed before the trial court on 3.5.2007 and warrants of arrest of accused/respondent were issued but could not be executed as the accused/respondent was fugitive. Despite issuance of proclamation under Section 87, Cr.P.C. and publication in the newspapers, the accused/respondent did not appear and he was declared proclaimed offender vide order dated 24.7.2007, by the trial court, and was convicted under Section 31-A of the National Accountability Ordinance, 1999 (the "NAB Ordinance") for a period of three years and case file was kept in dormant till his arrest. Thereafter the accused/respondent was admitted to ad-interim bail by this court with direction to appear before the trial court, whereafter the accused/respondent appeared before the trial court. The trial court framed charge and read over to the accused/respondent on 4.9.2018, to which he did not plead guilty and claimed trial. During trial the prosecution produced three witnesses. Meanwhile, the accused/respondent filed an application under Section 265-K with the ground that the accused/respondent has deposited the alleged misappropriated amount of Rs.14,40,570/- with the department and the department has closed the case against him. Under such circumstances, the trial court by converting the application under Section 265-K Cr.P.C into plea bargain and accepted the same. Hence, this appeal.

4. We have heard the arguments of Ch. Mumtaz Yousuf, DPG NAB assisted by Mr. Jaffar Raza ADPG NAB on behalf of the state and Mr. Shahid Javed on behalf of the accused/respondent and have also perused the material available on record.

5. Plea Bargain (PB) is the offer and confession of the accused that he has received corrupted money by corruption and corrupt practices and he is liable to be convicted for disqualification for a period of ten years under Section 15 of NAB Ordinance 1999. Admittedly the accused/respondent neither filed an application for plea bargain before the NAB authorities nor the Chairman NAB approved the plea bargain of the accused/respondent. The trial court directly converted the application filed by accused/respondent under Section 265-K Cr.P.C. into an application under Section 25 of the NAB Ordinance for plea bargain and accepted the same as a plea bargain. Now the question arises as to what are the requirements of section 25(b) of the NAB

Ordinance, which deals with the case of plea bargain. For ease of reference Section 25(b) of the NAB Ordinance is set out below:

"S.25(b) Where at any time after the authorization of investigation, before or after the commencement of the trial or during the pendency of an appeal, the accused offers to return to the NAB the assets or gains acquired or made by him in the course, or as a consequence, of any offence under this Ordinance, the Chairman, NAB, may, in his discretion, after taking into consideration the facts and circumstances of the case, accept the offer on such terms and conditions as he may consider necessary, and if the accused agrees to return to the NAB the amount determined by the Chairman, NAB, the Chairman, NAB shall refer the case for the approval of the Court, or as the case may be, the Appellate Court and for the release of the accused. (bold added)"(sic).

6. A perusal of Section 25(b) NAO explicitly makes it clear that it is only the Chairman NAB who can refer the PB matter to the court for approval. Thus, the application of the petitioner before the Accountability Court to fix the liability was not maintainable. The trial court has no power to fix the liability and direct the Chairman NAB to accept it. Fixing of the amount of liability is in the discretion of the Chairman NAB and the trial court has no role in this respect. It is well settled principle of law that where a procedure has been provided for doing a thing in a particular manner that thing should be done in that manner and in no other way or it should not be done at all, indeed it impliedly prohibits doing of thing in any other manner, the compliance for such thing in no way could be either ignored or dispensed with. Even if the Chairman NAB refers the PB then it must be approved (or not approved) by the trial court through a speaking order.

7. We have also noticed that the trial court had erred in entertaining the application under Section 265-K Cr.P.C on behalf of accused/respondent and converting his applicain in the plea bargain at the time when the prosecution's evidene was yet to be recorded and no request was made by the Chairman NAB for accepting the application for plea bargain. We are conscious of the fact that there was no bar of limitation as to the trial or the stage of the proceedings for filing an application for acquittal of the accused, but propriety demands that a fair opportunity should be provided to the prosecution to prove its case by producing evidence and the matters should be decided on merits as envisaged under section 245 of the Cr.P.C. after providing proper opportunity to the prosecution for producing its evidence and recording the statements of the accused persons under section 342 of the Cr.P.C.

8. In cases of corruption and misappropriation of public money, the Courts were required to act with extreme care and caution in deciding such cases and should not proceed hastily in acquitting the accused persons involved therein either under section 249-A or 265-K of the Cr.P.C., as the case may be, but should provide the prosecution every possible opportunity to prove its case and establish the guilt of the accused after a full-fledged trial. Reliance is placed on the case titled as The State through Advocate General, Sindh High Court of Karachi v. Raja Abdul Rehman (2005 SCMR 1544).

The accused/respondent directly deposited the alleged misappropriated amount of Rs.14,40,570/- with the department i.e. Office of the Postmaster General on 3rd August 2016. The question arises that, whether the said office has the authority to receive the misappropriated amount from

respondent/accused. Basically the amount would be deposited in the account of Provincial or Federal Government. It is important to mention here that the accused/respondent has misappropriated an amount of Rs.14,40,570/- in the year 2001 and allegedly he deposited the alleged misappropriated amount on 3rd of August 2016.

For the foregoing facts and discussions, the impugned order dated 26.03.2019 passed by the trial Court is set-aside and we direct that the case of accused/respondent Munawar Masih son of Inayat Masih shall proceed from the stage, at which the case stood when the application of accused/respondents under section 265-K of the Cr.P.C. was decided. Appeal is, accordingly, disposed of.

The accused/respondent will be at liberty if so advised to file an application to the NAB authorities for plea bargain in accordance with law and the NAB shall if such offer is made, consider the same as per law.

MH/72/Bal. Case remande

PLD 2020 Supreme Court 1

Present: Asif Saeed Khan Khosa, C J, Mazhar Alam Khan Miankhel and

Syed Mansoor Ali Shah, JJ

JURISTS FOUNDATION through Chairman---Petitioner

Versus

**FEDERAL GOVERNMENT through Secretary, Ministry of Defence and others---
Respondents**

Constitutional Petition No.39 of 2019, decided on 28th November, 2019

(In the matter of the Tenure and Extension of the Chief of the Army Staff).

Per Syed Mansoor Ali Shah, J; Asif Saeed Khan Khosa, CJ and Mazhar Alam Khan Miankhel, J agreeing.

(a) Constitution of Pakistan---

---Art. 184(3)---Public interest litigation before the Supreme Court---Withdrawal of petition with permission of Court---Scope and principles---Public interest litigation could only be withdrawn with the permission of the Court, because it did not raise a personal issue limited to the petitioner; it was not a dominis litis (the person to whom a suit belongs) that would give a right to the petitioner to withdraw it as a matter of choice---In granting the permission (to withdraw) the Court would be guided by considerations of public interest and would also ensure that it did not result in the abuse of the process of law---Courts must guard against possibilities of such litigants settling the matters out of Court to their advantage and then seeking withdrawal of the case---Sometimes withdrawal of a public interest litigation, for oblique ends, could be used to the detriment of the public interest agitated therein---Court had to be cautious not to fall prey to such oblique motives--Proceedings in public interest litigation were inquisitorial in nature and, therefore, the request for withdrawal of such litigation must always be weighed in the light of the question of public importance raised in it---Petitioner initiating public interest litigation was, therefore, not entitled to withdraw the petition at his sweet will---Court, however, may permit withdrawal of such litigation on considering the nature of the matter agitated therein and ensuring that it did not involve abuse of the process of law.

AIR 1997 SC 272; PLD 2017 Lah. 588; PLD 2014 Bal. 1 and AIR 1988 SC 2211 ref.

(b) Constitution of Pakistan---

---Arts. 9, 19A, 27, 243(4)(b) & 245---Pakistan Army Act (XXXIX of 1952), S.8(2)---Army Regulations (Rules), 1998, Regln. 19---Constitutional petition before the Supreme Court relating to the tenure and extension of the Chief of the Army Staff---Maintainability---Armed Forces were to defend the country against external aggression and threat of war, under the Constitution---Chief of the Army Staff (COAS) was an officer commanding the Army and was responsible for the command, discipline, training, administration, organization and preparedness for war of the Army; he was also the Chief Executive in the General Headquarters and an adviser to the Government on military matters --- Appointment of the COAS of the Army was, thus, inextricably linked with the life, security and liberty of every citizen and was undoubtedly a question of grave and vital public importance---Army was perceived to play an intrinsic role in upholding constitutional values of sovereignty, freedom, democracy and the fundamental rights relating to life, liberty and dignity--

-Hence, the questions relating to its structure, command, governance and organization were of public importance with reference to the enforcement of the fundamental rights---In today's age of information, the issues raised in the present petition also attracted fundamental right to information under Art.19A, as well as, the right to non-discrimination in services under Article 27 of the Constitution---Present petition was held to be maintainable accordingly.

(c) Constitution of Pakistan---

----Pt. II, Chapt. 1 [Arts. 8 to 28]---Fundamental rights---Interpretation---Fundamental rights in a living Constitution were to be liberally interpreted so that they continued to embolden freedom, equality, tolerance and social justice.

(d) Constitution of Pakistan---

----Art. 243(4)(b)---Pakistan Army Act (XXXIX of 1952), S. 8(2)---Army Regulations (Rules), 1998, Reglns. 19 & 255---Pakistan Army Act Rules, 1954---Constitutional petition before the Supreme Court relating to the tenure and extension of the Chief of the Army Staff---Incumbent Chief of the Army Staff (COAS) was provided an extension/re-appointment for a fresh term of three years in such office after expiry of his first term---Constitutionality and legality---No provision existed in the Army laws for the tenure and age of retirement of a General and as a consequence of the Chief of the Army Staff, as well as, for the extension of tenure or fresh appointment for another tenure---Summaries initiated by the Ministry of Defence and approved by the President, the Prime Minister and the Cabinet, for the reappointment, extension and fresh appointment of the incumbent COAS, were, therefore, meaningless and of no consequence---Exercising judicial restraint the Supreme Court gave an opportunity to the Federal Government in the light of the assurance of the Attorney-General to carry out appropriate legislation through an Act of Parliament within a period of six months---In order to preserve smooth functioning of the Army, the Supreme Court directed that the current status of the incumbent Chief of the Army Staff shall continue for a period of six months, whereafter the new legislation (Act of the Parliament) shall determine his tenure and other terms of his service; that in case the Federal Government remained unable to regulate the tenure and terms of service of a General and as a consequence of the COAS through an appropriate legislation by the Parliament, within a period of six months, the institutional practice of retirement of a General on completion of the tenure of three years shall stand enforced to regulate the tenure of incumbent COAS, from the date of his promotion to the rank of General and appointment as COAS, i.e. 29.11.2016, and the President shall, on advice of the Prime Minister, appoint a serving General officer as the new Chief of the Army Staff---Constitutional and legal flaws in the exercise of jurisdiction by the President, the Prime Minister, the Cabinet and the Ministry of Defence, in the extension, reappointment and appointment of the incumbent COAS highlighted.

Following are some of the constitutional and legal flaws in the exercise of jurisdiction by the President, the Prime Minister, the Cabinet and the Ministry of Defence, in the extension, reappointment and appointment of the incumbent Chief of the Army Staff (COAS):

(i) The Prime Minister appointed the incumbent COAS as the Chief of the Army Staff for another term of three years from the date of completion of the current tenure vide his "order" dated 19.08.2019, while the Prime Minister had no such power under the Constitution.

- (ii) The tenure of 3 years mentioned in the above order of the Prime Minister had no legal basis.
- (iii) The extension of the tenure of COAS for a further period of three years vide notification dated 19-08-2019 was not supported by law as there was no provision of tenure or extension of tenure prescribed under the Constitution or the law.
- (iv) The summary initiated by the Ministry of Defence dated 19.08.2019 stated that the incumbent COAS was due for retirement from 29.11.2019 by tenure but did not state the law providing for such tenure for retirement.
- (v) The said summary mentioned that the General Officer may be granted extension of one further tenure of three years under Regulation 255 of the Army Regulations (Rules), despite the fact that there was no tenure prescribed for a General and that there was no provision for extension for another tenure in the Pakistan Army Act, 1952, Pakistan Army Act Rules, 1954 or the Army Regulations (Rules).
- (vi) The President under Article 243(4)(b) of the Constitution granted extension to the incumbent COAS for three years on 19-08-2019, while the President had no power to grant extension under the Constitution or the law.
- (vii) The Government, the very next day, i.e. 20-08-2019, retracted from the earlier position and without withdrawing the notification regarding grant of extension to the incumbent COAS, issued under the approval/authority of the President a day before, took up the matter of extension of the tenure of the COAS with the Cabinet relying on Army Regulation 255 in the absence of any tenure or age of retirement prescribed for a General.
- (viii) Only 11 members of the Cabinet out of 25 approved the above summary through circulation. However, no notification was issued under the authority or approval of the Federal Government regarding extension of the tenure of the incumbent COAS. Thus, this exercise served no purpose.
- (ix) This approval through circulation failed to comply with Rule 19 of the Rules of Business, 1973 which required that the Cabinet Secretary was to specify the time by which the opinions of the Ministers should be communicated to him. No such timeframe was specified.
- (x) The Ministry of Defence issued notification dated 26.11.2019 stating that retirement of incumbent COAS, as a General Officer had been limited and he had been granted extension for further three years. This exercise conducted under the freshly amended Army Regulations (Rules) 255 (including the word "extension") could only be useful if there had been tenure or retirement age of a General provided under the law.
- (xi) Finally on 28-11-2019, a fresh summary was put up before the Prime Minister for appointment of incumbent COAS as the Chief of the Army Staff w.e.f. 28-11-2019 under Article 243(4)(b) of the Constitution which was approved by the President, leading to notification dated 28-11-2019. This Notification stated that the notification dated 26.11.2019 regarding limiting retirement and granting extension of service to incumbent COAS stood withdrawn. This shows that there remained no notification in the field regarding limiting retirement and granting extension of service to the incumbent COAS. The appointment of the incumbent COAS on 28.11.2019 was again based on the assumption that his tenure had expired. [p. 21] D

Detailed examination of the laws relating to the Army revealed that there was no provision providing for the tenure and age of retirement of a General and as a consequence of the Chief of

the Army Staff, as well as, for the extension of tenure or fresh appointment for another tenure; nor was there any consistent and continuous institutional practice of granting such extension, which could be enforced in absence of the law on the subject. The summaries initiated by the Ministry of Defence and approved by the President, the Prime Minister and the Cabinet, for the re-appointment, extension and fresh appointment of the incumbent COAS seemed to be meaningless and of no consequence in the absence of the law prescribing tenure of a General and providing extension for another tenure. Attorney General had assured the Court that the Federal Government would carry out legislation through the Parliament in the shape of an Act within six months to provide for the terms of service of a General (and as a consequence of COAS) so that effect could be given to Article 243 of the Constitution in letter and spirit and functionality of the constitutional provisions be realized at the earliest.

Supreme Court observed that exercising judicial restraint it was appropriate to leave the matter to the Parliament and the Federal Government to clearly specify the terms and conditions of service of the COAS through an Act of Parliament within a period of six months, and to clarify the scope of Article 243 of the Constitution in such regard; that the Federal Government may also, if deemed appropriate, specifically provide for extension of the tenure of an army officer of the rank of a General in the Act with grounds for granting such an extension, so that the discretion of the Federal Government in granting extension to a General was structured.

Sindh High Court Bar Association v. Federation of Pakistan PLD 2009 SC 879; Government of Sindh v. Sharaf Faridi, 1990 SCMR 91, PLD 1994 SC 105 and Nadeem Ahmad v. Federation of Pakistan PLD 2010 SC 1165 ref.

In the present state of legal vacuum regarding the tenure of a COAS and in the light of the assurance given by the Federal Government to address these issues through fresh legislation within six months, and considering that the COAS was the commanding officer of the Army and was responsible for the command, discipline, training, administration, organization and preparedness for war of the Army and in order to preserve smooth functioning of the Army, the Supreme Court directed that the current status of the incumbent COAS shall continue for a period of six months, where after the new legislation (Act of the Parliament) shall determine his tenure and other terms of his service; that in case the Federal Government remained unable to regulate the tenure and terms of service of a General and as a consequence of the COAS through an appropriate legislation by the Parliament, within a period of six months, the tenure of the constitutional post of COAS could not be left totally unregulated and to continue forever; that in case of such failure of the Federal Government the institutional practice of retirement of a General on completion of the tenure of three years as borne out from the record, shall stand enforced to regulate the tenure of incumbent COAS consequentially his tenure as COAS, from the date of his promotion to the rank of General and appointment as COAS, i.e. 29.11.2016, and the President shall, on advice of the Prime Minister, appoint a serving General officer as the new COAS.

Supreme Court observed that its exercise of judicial restraint in the present matter may not be mixed up or confused with the application of the doctrine of necessity, which amounted to going against the law of the land to attend to some political or other goal; that this was not so in the

present case where there was no law, in fact, there was a total legal vacuum regarding the tenure of a General.

(e) Constitution of Pakistan---

----Art. 243---Command of Armed Forces---History and evolution of Art.243 of the Constitution traced.

(f) Interpretation of statutes---

----Words in a provision could not be read and interpreted in isolation---Meaning and scope of a provision was determined by looking not to the isolated words used therein but by reading its text in context.

(g) Constitution of Pakistan---

----Art. 243(4)(b)---Army Regulations (Rules), 1998, Regln. 125---Pakistan Army Act (XXXIX of 1952), Preamble---Chief of the Army Staff, appointment of---Qualifications---Only a serving General could be appointed as the Chief of the Army Staff, because only a serving army officer was subject to the Pakistan Army Act, 1952---Retired army officer had no terms of service and was not regulated under the said Act.

(h) Army Regulations (Rules), 1998---

----Regln. 262-A---Pakistan Army Act, (XXXIX of 1952), S. 18---Pakistan Army Act Rules, 1954, R. 12---Constitution of Pakistan, Arts.240 & 243(3) & 243(4)(b)---Constitutional petition before the Supreme Court relating to the tenure and extension of the Chief of the Army Staff---Chief of the Army Staff (COAS) or an Army General (commissioned after the year 1970)---Retirement age and extension of tenure---Regulation 262-A of the Army Regulations (Rules), 1998, which dealt with officers commissioned after 1970, did not provide the retirement age of an officer of the rank of a General---Pakistan Army Act, 1952 fell deficient of the structural requirements for raising and maintaining an Army under clause (3) of Art.243 of the Constitution, as it did not provide for essential elements required to raise and maintain an Army, particularly the grant of Commissions in the Army and the terms of service of the Commissioned Officers including tenure and extension of a General---At present the tenure of a General and consequentially of a COAS was three years as per institutional convention and practice---Supreme Court observed that such an institutional practice could not be a valid substitute of the law required to be made in pursuance of the constitutional mandate under Art.243(3) of the Constitution; that this was a serious legislative omission, yet in the absence of such law the institutional convention and practice could be enforced to remove uncertainty as to the tenure of a General and to make the constitutional post of Chief of the Army Staff functional; that service in the Armed Forces being "Service of Pakistan" must be regulated by or under the law in accordance with the provisions of Art.240 of the Constitution read with Art.243(3), otherwise, it was inconceivable that the highest rank in the Army, would have no tenure or age of retirement or other terms of service; that in the first instance, the matter should be allowed to be regulated by law, made by the legislature, as mandated by the Constitution.

(i) Army Regulations (Rules), 1998---

----Regln. 255---Army officer---Delaying or suspending retirement or extending date of retirement---Scope---Regulation 255 of the Army Regulations (Rules), 1998, could only be invoked for an officer who had retired or was about to retire---Emphasis was to delay the retirement

either by limiting the retirement or by extending the date of retirement or suspending retirement after retirement---Such an act was a temporary arrangement and could only be availed if the exigencies of service and public interest so required---Essence of Regln. 255 was that if an officer was on the way out (about to retire) and urgent or pressing circumstances required that he be retained in service, said Regulation came into play---Exercise of discretion by the Federal Government under Regln. 255 had to be structured on parameters of exigency of service with a corresponding temporary period in mind---Words suspension, limiting retirement and extension did not connote permanency and could not be equated with grant of new tenure or a fresh appointment, therefore, a new tenure or fresh appointment or extension of another full tenure could not be given or granted to an army officer, including a General, under Army Regulation (Rules) 255.

(j) Legislation---

---Delegated legislation---Rules and Regulations---Delegatee must have legislative guidelines to formulate Rules and Regulations, and such guidelines, contours or boundaries must come from the Legislature (Parliament) itself---Legislature could confer upon any person or body the power to make subordinate/delegated legislation (Rules, Regulations or byelaws, etc.) in order to give effect to the law enacted by it yet it must perform itself the essential legislative function, i.e. to exercise its own judgment on vital matters of policy and enact the general principles providing guidance for making the delegated legislation.

(k) Separation of powers, doctrine of---

---Delegation of an "essential legislative function" by the Legislature to the Executive was not permissible under the Constitution---Foundation of such embargo owed its genesis to the concept of trichotomy of powers between the Legislature, the Executive and the Judicature, which was a fundamental principle of the constitutional construct.

(l) Pakistan Army Act (XXXIX of 1952)---

---S. 176A---Army Regulations (Rules), 1998---Power to make Regulations---Section 176A of the Pakistan Army Act, 1952, vires of---In order to provide a legal cover to the Army Regulations (Rules), S.176A was inserted in the Pakistan Army Act, 1952, which empowered the Federal Government to make Regulations---Army Regulations (Rules) once brought within the statutory fold must flow from the Pakistan Army Act, 1952---Regulations which did not meet such requirement would be ultra vires the said Act---Scope of the Pakistan Army Act, 1952 or the vires of the Army Regulations (Rules) could not be determined by the words inserted in S.176A like governance, command, discipline, recruitment, terms and conditions of service, rank, precedence and administration of the Pakistan Army---Said words were mere words when there was no essential or core legislation on these subjects---Section 176-A after its insertion provided a shortcut and authorized the Federal Government to regulate areas like governance, command, discipline, recruitment, terms and conditions of service, rank, precedence and administration of the Pakistan Army through the Army Regulations (Rules)---Power of the Parliament under the Constitution could not be delegated to the Federal Government without the Parliament performing the basic essential legislative function, i.e. providing policy guidelines on these areas---Through S.176A, the Parliament appeared to have divested itself of the essential legislative function which amounted

to excessive delegation, as neither said section nor any other section of the Pakistan Army Act, 1952 provided the essential legislative policy guidelines for making the delegated legislation, viz. the Regulations, on the subjects mentioned therein---Army Regulations (Rules) would be rendered ultra vires if they did not draw their power from the parent Act, i.e. the Pakistan Army Act, 1952 and would suffer from excessive delegation if they drew their strength only from S.176A of the Act---Army Regulations (Rules) appeared to be without any legal cover and fell outside the scope of the Pakistan Army Act, 1952---Said Regulations had to be fully examined in the light of said principles---Supreme Court observed that it was for the Federal Government to bring about appropriate legislation to remove such defects so that the Army Regulations (Rules) had a proper legal cover and were fully enforceable under the law.

(m) Right of Access to Information Act (XXXIV of 2017)---

---Ss. 3 & 7(e)---Army Regulations (Rules), 1998---Inaccessible for public---Acts of the Parliament or subordinate legislation were public documents and must be readily available to the citizen of the country subject to the exceptions provided under the Right of Access to Information Act, 2017---Said exceptions extended only to record relating to defence forces, defence installations or connected therewith and ancillary to defence and national security and not to the Army laws---Every legislative instrument must be made accessible to public.

(n) Administration of justice---

---Institutional practice, reliance upon---Scope---Institutional practice followed continuously and consistently by an institution for a considerable period of time may be used to resolve a controversy, in the absence of the law.

2011 SCMR 408 and PLD 1990 SC 612 ref.

(o) Judicial restraint, doctrine of---

---Scope---Constitutional questions---Judicial restraint in its substantial approach urged Judges considering constitutional questions to give deference to the views of the elected branches and invalidate their actions only when constitutional limits had clearly been violated---While the principle, "if it is not necessary to decide more, it is necessary not to decide more" well stated the procedural aspect of judicial restraint---Judicial restraint (exercised so as not to intrude in other branches of Government) was essential to the continuance of rule of law, and for the continued public confidence in the political impartiality of the judiciary and the voluntary respect for the law as laid down and applied by the Courts.

Judicial Restraint, definition by Kermit Roosevelt, available online at <https://www.britannica.com/topic/judicial-restraint>; PDK Labs., Inc. v. Drug Enforcement Admin., 362 F. 3d 786 (CA DC 2004), per John Roberts, J. and Imtiaz Ahmad v. Government of Pakistan 1994 SCMR 2142 ref.

(p) Constitution of Pakistan---

---Arts. 184(3) & 199---Judicial review, power of---Scope---Power of judicial review was a great weapon in the hands of Judges, but the Judges must observe the Constitutional limits set by the parliamentary system on their exercise of this beneficial power, namely, the separation of powers between the Parliament, the Executive and the Courts---Judicial review must, therefore, remain

strictly judicial and in its exercise Judges must take care not to intrude upon the domain of the other branches of Government.

Per Asif Saeed Khan Khosa, CJ; agreeing with Syed Mansoor Ali Shah, J.

(q) Constitution of Pakistan---

---Arts. 243(3) & 243(4)(b)---Pakistan Army Act (XXXIX of 1952), S.8(2)---Army Regulations (Rules), 1998, Regln. 255---Constitutional petition before the Supreme Court relating to the tenure and extension of the Chief of the Army Staff---Terms and conditions of service of Chief of the Army Staff, the tenure of his office, extension in the tenure of his office or his reappointment to that office had remained unregulated by any law so far---Clause (3) of Art.243 of the Constitution mandated that the President's power to raise and maintain the armed forces was to be "subject to law" and, thus, leaving some vital aspects relevant to the office of Chief of the Army Staff without being regulated by any law militated against the said express provision of the Constitution---His Lordship observed with hope and optimism that framing of a law by the Parliament regulating the terms and conditions of the office of Chief of the Army Staff may go a long way in rectifying multiple historical wrongs and in asserting sovereign authority of the chosen representatives of the people besides making exercise of judicial power of the Courts all pervasive, and that the democratic maturity of the nation had reached a stage where the Supreme Court could proclaim that "Howsoever high you may be; the law is above you".

Petitioner in person.

For the Respondents:

Anwar Mansoor Khan, Attorney-General for Pakistan with Sajid Ilyas Bhatti, Addl. Attorney-General Amir-ur-Rehman, Addl. Attorney-General Ch. Ishtiaq Ahmed, Addl. Attorney-General. Sohail Mehmood, Dy. Attorney-General.

Mian Asghar Ali, Dy. Attorney-General Assisted by Ms. Faryal Shah Afridi, Advocate.

Syed Iqbal Hashmi, Advocate Supreme Court.

Brig. Falak Naz, Director (Law), Ministry of Defence.

Flt. Lt. Khalid Abbas, Asst. Director (Law), Ministry of Defence.

Brig. Muhammad Khalid Khan, JAG Department, GHQ.

Lt. Col Rai Tanveer Ahmed Kharral, OIC, JAG Department, GHQ.

Dr. Farogh Nasim, Advocate Supreme Court for Respondent No.4, along with Abid S. Zuberi, Advocate Supreme Court, assisted by Ayan Memon, Shahid

Naseem Gondal and Barrister Maleeka Ali Bukhari.

Mehmood A. Sheikh, Advocate-on-Record.

Supreme Court Research Centre (SCRC) for Research Assistance.

Dates of hearing: 26th, 27th and 28th November, 2019.

JUDGEMENT

SYED MANSOOR ALI SHAH, J.---At the heart of this case lies the fundamental question of rule of law: Is our government of laws or of men?1 The case before us questions whether the top military post in the country, that of the Chief of the Army Staff ("COAS"), the commanding officer of the Pakistan Army, is regulated by the Constitution and the law; whether the COAS has a tenure or can seek an extension or has any terms of service under the law.

2. The proceedings of the case brought to fore more questions: Whether the constitutional mandate since 1956 of raising and maintaining an Army under the law, has been fulfilled by the Pakistan Army Act, 1952; whether Regulation 255 of the Army Regulations (Rules) is designed to grant extension to a COAS for another term; whether at all, the Army Regulations (Rules), inherited from the British India, enjoy the protection of the Pakistan Army Act, 1952? This judgment addresses these questions.

3. The history of our Army has seen successive appointments, retirements and extensions of several Chiefs of the Army Staff since Independence. However, for the first time the matter has come to the highest Court of the land questioning the legal framework under which these appointments, retirements and extensions take place.

Facts

4. The Prime Minister appointed the current COAS for another term of three years through his "order" dated 19.08.2019. Thereafter, the President on the advice of the Prime Minister granted "extension" for one further tenure of three years to the COAS w.e.f. 29.11.2019. This public interest litigation (PIL) has challenged the extension of the COAS on the ground that it is offensive to Article 243(4)(b) of the Constitution of the Islamic Republic of Pakistan, 1973 ("Constitution"), thereby urging the Court to strike it down.

5. The petitioner did not appear on the first date of hearing. The Court Associate placed an undated handwritten application before the Court, which prayed that the petitioner be allowed to withdraw the petition. This application was not entertained by the Court for the following reasons recorded in the order dated 26.11.2019:

"The Court-Associate has produced before us a handwritten application statedly submitted by the petitioner seeking permission to withdraw this petition. The petitioner has failed to appear in person nor anybody else has appeared on his behalf. The application received does not carry any date and the same is not accompanied by any affidavit. There is nothing before us to accept or to presume that the said application has actually been submitted by the petitioner himself or that he has submitted the same voluntarily. Be that as it may the petition in hand invokes Article 184(3) of the Constitution and the subject matter of the petition involves a question of public importance with reference to enforcement of fundamental rights and, thus, the individual capacity of the petitioner pales into insignificance even if he decides not to pursue the present petition. The application attributed to the petitioner is, therefore, not entertained."

The Petitioner appeared in person, on the next date of hearing and made an oral request seeking permission to withdraw the petition. He was apprised of the above quoted observation of the Court, and his request was turned down.

Public Interest Litigation (PIL) - Withdrawal

6. A public interest litigation (PIL) can only be withdrawn with the permission of the Court. This is because it does not raise a personal issue limited to the petitioner; it is not a *dominis litis* (the person to whom a suit belongs) that would give a right to the petitioner to withdraw it as a matter of choice. "In granting the permission (to withdraw) the Court would be guided by considerations of public interest and would also ensure that it does not result in the abuse of the process of law.

Courts must guard against possibilities of such litigants settling the matters out of Court to their advantage and then seeking withdrawal of the case."²Sometimes withdrawal of a public interest litigation, for oblique ends, can be used to the detriment of the public interest agitated therein. The Court has to be cautious not to fall prey to such oblique motives. The proceedings in public interest litigation are inquisitorial in nature and, therefore, the request for withdrawal of such litigation must always be weighed in the light of the question of public importance raised in it. A petitioner initiating public interest litigation is, therefore, not entitled to withdraw the petition at his sweet will.³ The Court, however, may permit withdrawal of such litigation on considering the nature of the matter agitated therein and ensuring that it does not involve abuse of the process of law.

Maintainability and Jurisdiction under Article 184(3)

7. The Armed Forces are to defend Pakistan against external aggression and threat of war, under our Constitution.⁴ The COAS is an officer commanding the Pakistan Army⁵ and is responsible for the command, discipline, training, administration, organization and preparedness for war of the Army. He is also the Chief Executive in the General Headquarters and an adviser to the Government on military matters.⁶ The appointment of the COAS of the Pakistan Army is, thus, inextricably linked with the life, security and liberty of every citizen and is undoubtedly a question of grave and vital public importance. The Army is perceived to play an intrinsic role in upholding constitutional values of sovereignty, freedom, democracy and the fundamental rights relating to life, liberty and dignity. Hence, the questions relating to its structure, command, governance and organization are of public importance with reference to the enforcement of the fundamental rights. In this age of information, the issues raised also attract fundamental right to information under Article 19A, as well as, the right to non-discrimination in services under Article 27 of the Constitution. Fundamental rights in a living Constitution are to be liberally interpreted so that they continue to embolden freedom, equality, tolerance and social justice.

8. Even the learned Attorney-General appearing for the Federal Government and the learned counsel for the COAS thought it appropriate, in this case, not to raise any objection to the assumption of jurisdiction by this Court or to the maintainability of this petition. They, during the hearing, rather tried to satisfy and convince the Court about the legality of the extension granted to the COAS and practically demonstrated that "it is confidence in the men and women who administer the judicial system that is the true backbone of the rule of law."⁷ They in the course of arguments beseeched the Court to provide guidance to the Federation in this important matter.

9. The case proceeded as the Attorney-General for Pakistan ("Attorney-General") was already in attendance on his own, on the first date of hearing, and took us through the Summaries, approvals and orders passed regarding the extension of the COAS. The Court in its order dated 26.11.2019 identified some prima facie constitutional and legal flaws in the process of granting extension to the COAS and issued notices to all the respondents after impleading General Qamar Javed Bajwa, the COAS, as a respondent in the petition. The Court also suspended the operation of the notification of his extension dated 19.08.2019. The case was fixed for hearing the next day, on the request of the Attorney General. Relevant extract of the order dated 26.11.2019 is given as follows for ready reference:

"i) A summary had initially been moved by the Ministry of Defence for extension of the term of office of the Chief of the Army Staff and subsequently he was appointed as Chief of the Army Staff for a second term of three years after completion of his first term in that office but the learned Attorney-General for Pakistan has not been able to refer to any provision in any legal instrument regarding extension in service of a Chief of the Army Staff upon completion of his first term in that office or for his re-appointment to that office after completion of his first term.

ii) In the case in hand the Prime Minister had himself passed an order appointing the current Chief of the Army Staff for a second term in that office on 19.08.2019 whereas under Article 243 of the Constitution it is the President who is the appointing authority for that office. Apparently that mistake came to notice straightaway and on the same day, i.e. 19.08.2019 a summary was moved from the Prime Minister's office to the President for extension/re appointment of the incumbent Chief of the Army Staff and on that very day, i.e. 19.08.2019 the President was pleased to approve the summary in that regard and, hence, the advice of the Prime Minister was apparently accepted and acted upon. It appears that even that process was found to be flawed and on that very day it was realized that the Prime Minister or the President could not take the above mentioned actions without the approval of the Cabinet and, thus, on the next day, i.e. 20.08.2019 a summary was moved in the relevant regard for approval of the Cabinet and on 21.08.2019 the Cabinet was said to have approved the said proposal through circulation. The opinion of the Cabinet recorded in this regard, photocopies whereof have been produced before us, shows that there are 25 members of the Cabinet and out of those 25 members only 11 had agreed to the proposal which shows that the majority of the Cabinet had not approved the said proposal. Yet another peculiar aspect is that after the purported or so-called approval of the Cabinet regarding extension/re-appointment of the incumbent Chief of the Army Staff the matter was never sent to the Prime Minister or the President again for the purposes of a fresh advice or a fresh order of the Prime Minister and the President respectively.

iii) After our repeated queries the learned Attorney-General for Pakistan has referred to Regulation No. 255 of the Army Regulations (Rules) according to which a retirement of an Army officer can temporarily be suspended or limited. By placing reliance upon the said Regulation the learned Attorney-General for Pakistan has maintained that the Federal Government has the requisite authority to re-appoint or extend the services of an incumbent Chief of the Army Staff prior to his retirement if the exigencies of the service so require or the public interest so demands. A bare perusal of Regulation No. 255, however, prima facie shows that the said provision can be invoked after an officer has already retired from service and that is why the said Regulation speaks of suspension of retirement or limiting of retirement. Suspending a retirement or limiting a retirement before the retirement has actually taken effect may amount to putting the cart before the horse. The learned Attorney-General for Pakistan has, however, very candidly submitted before us that in the entire body of laws pertaining to the Pakistan Army there is no express provision available regarding re-appointment or extension in the service of a Chief of the Army Staff.

iv) The stated purpose for the proposed re-appointment/extension in the term of office of the incumbent Chief of the Army Staff is "regional security environment". The said words are quite vague and if at all there is any regional security threat then it is the gallant armed forces of the country as an institution which are to meet the said threat and an individual's role in that regard may be minimal. If the said reason is held to be correct and valid then every person serving in the armed forces would claim re-appointment/extension in his service on the basis of the said reason."

Submissions of Attorney-General

10. The Attorney-General defended the Federal Government by arguing that the fresh appointment/ extension of the COAS is fully within the constitutional and legal fold. He submitted that the tenure of a General/COAS is three years as per unwritten convention and practice; that the tenure of a General/COAS can be extended under Regulation 255 of the Army Regulations (Rules); that the said Regulations have been framed under section 176-A of the Pakistan Army Act, 1952 and, therefore, have statutory force; and that even a retired Army General can be appointed as COAS under Article 243(4) of the Constitution, as the said clause of Article 243 is not subject to law. The Attorney-General took us through a series of documents, prepared prior to the filing of the instant petition and also those prepared during the course of hearing of the case, comprising the Summaries put up before the President, Prime Minister and the Cabinet; the subsequent approvals; and the relevant notifications regarding "reappointment", "extension", "limit-in-retirement" and "appointment" of General Qamar Javed Bajwa. A brief summary of the said documents is given as follows:

Initial appointment of General Bajwa as COAS

- a. On 15.11.2016, the Ministry of Defence moved a Summary for the Prime Minister seeking approval of the Prime Minister under Rule 12 of the Pakistan Army Act Rules, 1954 for the retirement of General Raheel Sharif, COAS w.e.f. 29.11.2016.
- b. On 28.11.2016, the Ministry of Defence notified the approval granted by the Federal Government for the retirement of General Raheel Sharif, COAS w.e.f. 29.11.2016.
- c. On 26.11.2016, the Prime Minister gave advice to the President to promote General Qamar Javed Bajwa to the rank of General and to appoint him as COAS under Article 243(4)(b) of the Constitution. The President approved the advice on the same date.
- d. On 26.11.2016, the Ministry of Defence notified the promotion of General Bajwa to the rank of General and his appointment as COAS w.e.f. 29.11.2016.

Extension of General Bajwa as COAS

First Proceedings dated 19.08.2019

- e. The Prime Minister of Pakistan made an "order" appointing General Bajwa, as the COAS for another term of three years from the date of completion of current tenure. He stated "the regional security environment" as a reason of his said order.
- f. The Prime Minister's office addressed a letter to the Defence Secretary stating that the Prime Minister had desired the extension of service of General Bajwa as COAS for another term of three years from the date of completion of the current tenure, and directed the Ministry of Defence to initiate a Summary to that effect.

g. The Ministry of Defence initiated a Summary for the Prime Minister stating therein that General Bajwa was due for retirement from 29.11.2019 by tenure and the Prime Minister was desirous for the extension of tenure of the General Officer for another term of three years from the date of completion of current tenure. The Ministry recommended that the General Officer may be granted extension under the Army Regulations (Rules) 255 for one further tenure (3 years) w.e.f. 29.11.2019 and beyond superannuation. The Ministry proposed the Prime Minister to advise the President to approve the recommendation regarding extension of the General Officer under Article 243(4)(b) of the Constitution. The Prime Minister advised accordingly and the President approved the Summary on the same day.

h. The Ministry of Defence notified that General Bajwa, COAS, had been granted extension for one further tenure (03 years) w.e.f. 29.11.2019 to 29.11.2022.

Second Proceedings dated 20.08.2019 and 21.08.2019

i. The Ministry of Defence, on 20.08.2019, initiated a Summary stating that the President has been pleased to approve the extension of the term of the General Officer for another 3 years from 29 Nov. 2019 to 29 Nov. 2022; that Rule 255 of the Army Regulations (Rules) stipulates that the retirement of officers will always be subject to the exigencies of service. Full power is reserved to Federal Government to "limit retirement in general or in individual cases whenever it may be necessary to do so in the public interest". With the said statements of fact and of law, the Ministry of Defence recommended that approval of the Federal Government was solicited for extension of the term of the General Officer for another 3 years from 29 Nov. 2019 to 29 Nov. 2022 and proposed obtaining approval of the Summary from the Cabinet through circulation.

j. The Cabinet Division, on 21.08.2019, circulated the said Summary amongst the members of the Cabinet with the approval of the Prime Minister. 11 (eleven) members of the Cabinet endorsed the Summary, while approval of 11 (eleven) members remained "awaited", while 03 (three) members were stated to be out of city or country. The Cabinet Division, however, considered the Summary to have been endorsed by the available members of the Cabinet by circulation. But the extension purportedly granted by the Federal Government was not notified.

Third Proceedings dated 26.11.2019

k. The Ministry of Defence moved the following three Summaries for the consideration of the Cabinet:-

- i. Summary for withdrawal of the earlier Summary dated 20.08.2019 which was got approved by circulation on 21.08.2019;
- ii. Summary for amendment/ substitution of Rule 255 of the Army Regulations (Rules); and
- iii. Summary for limiting the retirement of and grant of extension in service to General Qamar Javed Bajwa.

The Cabinet approved all the said three Summaries in its meeting held on 26.11.2019.

Fourth Proceedings dated 26.11.2019

- l. The Ministry of Defence notified the amendment/ substitution of Rule 255 of the Army Regulations (Rules), and also moved the following two Summaries for the Prime Minister:-
- i. Summary for proposing withdrawal of the advice dated 19.08.2019 given to the President so that the President may withdraw the appointment of the COAS dated 19.08.2019 and any subsequent order or notification; and
 - ii. Summary for proposing the Prime Minister to advise the President to re-appoint General Bajwa for another term of three years as COAS under Article 243(4)(b) of the Constitution.
- The Prime Minister advised accordingly, and the President approved the said Summaries.
- m. The Ministry of Defence issued Notification No.3 / 11 / D-2 (A-II)/2019 dated 26.11.2019 stating thus:

"This Ministry's Notification of even No. dated 19 August, 2019 regarding extension in service in respect of PA-19617 General Qamar Javed Bajwa, NI(M), HI(M), Chief of the Army Staff (CAOS) is hereby withdrawn."

The Ministry of Defence, on the same day, issued another Notification No. F.3/11/D-2 (A-II)/2019 stating that:

"PA-19617 General Qamar Javed Bajwa, NI(M), HI(M), Chief of the Army Staff's (CAOS) retirement has been limited and he has been granted extension for one further tenure (03 years) with effect from 29 November 2019 to 29 November 2022."

Fifth Proceedings dated 28.11.2019

- n. The Ministry of Defence initiated yet another Summary stating that the earlier Summaries and subsequent orders and notifications are liable to be withdrawn, and proposed the Prime Minister to advise the President:-
- i. to approve the appointment of General Qamar Javed Bajwa, Chief of the Army Staff (CAOS) with effect from 28.1.2019, in view of the exigencies and highest public interest, in terms of Article 243 (4) (b) of the Constitution of the Islamic Republic of Pakistan, 1973;
 - ii. to determine that General Qamar Javed Bajwa, Chief of the Army Staff, shall be entitled to salary and allowances as prescribed under the Pay and Allowances Regulations (Army) as amended from time to time; and
 - iii. to supersede the earlier approval of the President on the advice of the Prime Minister dated 26.11.2019.

The PM advised accordingly and the President approved the Summaries.

- o. The Ministry of Defence, on the same day, finally issued Notification No.F.3/11/D-2(A-II)/2019 stating thus:

"In exercise of the powers conferred under Article 243 (4) (b) of the Constitution of the Islamic Republic of Pakistan, 1973, the President, on advice of the Prime Minister, is pleased to appoint PA-19617 General Qamar Javed Bajwa, NI(M), HI(M), Chief of the Army Staff (CAOS) with effect from 28th November 2019, on salary and allowances prescribed under the Pay and Allowances Regulations (Army) as amended from time to time.

2. This Ministry's Notification No.3/11/D-2(A-II)/2019 dated 26 Nov, 2019 regarding limiting retirement and granting extension in service to the above named General Officer

and Notification No.3/ 11 /D-2(A-II)/2019 dated 27 November 2019 are hereby withdrawn."

Flaws in the above process

11. In addition to the flaws noted in the process in our order dated 26.11.2019, the exercise of jurisdiction by the President, the Prime Minister, the Cabinet and the Ministry of Defence, Government of Pakistan in the extension, reappointment and appointment of the COAS highlights some further constitutional and legal flaws which are stated as follows:

- a. The Prime Minister appointed General Bajwa as the COAS for another term of three years from the date of completion of the current tenure vide his "order" dated 18.09.2019, while the Prime Minister has no such power under the Constitution.
- b. The tenure of 3 years mentioned in the above order of the Prime Minister has no legal basis.
- c. The extension of the tenure of COAS for a further period of three years vide Notification dated 19.08.2019 is not supported by law as there is no provision of tenure or extension of tenure prescribed under the Constitution or the law.
- d. The Summary initiated by the Ministry of Defence dated 19.08.2019 stated that General Qamar Javed Bajwa was due for retirement from 29.11.2019 by tenure but did not state the law providing for such tenure for retirement.
- e. The said Summary mentioned that the General Officer may be granted extension of one further tenure of three years under the Army Regulations 255, despite the fact that there is no tenure prescribed for a General and that there is no provision for extension for another tenure in the Pakistan Army Act, 1952, Pakistan Army Act Rules, 1954 or the Army Regulations (Rules).
- f. The President under Article 243(4) (b) of the Constitution granted extension to General Bajwa for three years on 19.08.2019, while the President has no power to grant extension under the Constitution or the law.
- g. The Government, the very next day, i.e. 20.08.2019, retracted from the earlier position and without withdrawing the notification regarding grant of extension to General Bajwa, issued under the approval/ authority of the President a day before, took up the matter of extension of the tenure of General Bajwa with the Cabinet relying on Army Regulation 255 in the absence of any tenure or age of retirement prescribed for a General.
- h. Only 11 members of the Cabinet out of 25 approved the above Summary through circulation. However, no notification was issued under the authority or approval of the Federal Government regarding extension of the tenure of General Bajwa. Thus, this exercise served no purpose.
- i. This approval through circulation failed to comply with Rule 19 of the Rules of Business, 1973 which requires that the Cabinet Secretary is to specify the time by which the opinions of the Ministers should be communicated to him. No such timeframe was specified.
- j. The Ministry of Defence issued notification dated 26.11.2019 stating that retirement of General Bajwa, as a General Officer has been limited and he has been granted extension

for further three years. This exercise conducted under the freshly amended Army Regulations (Rules) 255 (including the word "extension") could only be useful if there had been tenure or retirement age of a General provided under the law.

k. Finally on 28.11.2019, a fresh Summary was put up before the Prime Minister for appointment of General Bajwa as COAS w.e.f. 28.11.2019 under Article 243(4)(b) of the Constitution which was approved by the President, leading to notification dated 28.11.2019. This Notification stated that the notification dated 26.11.2019 regarding limiting retirement and granting extension of service to General Bajwa stands withdrawn. This shows that there remains no notification in the field regarding limiting retirement and granting extension of service to General Bajwa. The appointment of General Bajwa on 28.11.2019 is again based on the assumption that his tenure has expired.

12. Some Summaries mention that the same have been prepared in due deference to observations of the Supreme Court of Pakistan. This generates an impression that the same have been made on the orders or directions of this Court. This is totally incorrect. In fact the Court simply highlighted steps taken by the President, the Prime Minister and the Cabinet, without any supporting law and as a consequence they on its own tried to rectify the same. The impression generated that the said steps were taken on the desire, orders or directions of the Court is dispelled.

Scope of Article 243 of the Constitution

13. The questions highlighted above require us to understand the legal structure of the Pakistan Army and the terms of service of its Commander, i.e. the Chief of the Army Staff. Therefore, it is most appropriate to begin with the understanding of the scope of Article 243 of the Constitution, which relates to raising and maintaining the Armed Forces and the appointment of their Chiefs.

14. "It is a constitution we are expounding⁸." As Chief Justice Dickson of the Supreme Court of Canada noted that "the task of expounding a constitution is crucially different from that of construing a statute. A statute defines present rights and obligations. It is easily enacted and as easily repealed. A constitution, by contrast, is drafted with an eye to the future. Its function is to provide a continuing framework for the legitimate exercise of governmental power and, when joined by a Bill or Charter of rights, for the unremitting protection of individual rights and liberties. Once enacted, its provisions cannot easily be repealed or amended. It must, therefore, be capable of growth and development over time to meet new social, political and historical realities often unimagined by its framers. The judiciary is the guardian of the constitution and must, in interpreting its provisions, bear these considerations in mind.⁹" "Any interpretation of the Constitution must be grounded in its own language." It is a language written in invisible ink, between the lines, and derived from the structure of the Constitution.¹⁰

15. The history of Article 243 of the Constitution begins with Article 40 of the Constitution of the Islamic Republic of Pakistan, 1956 ("1956 Constitution") and travels through 54 years to take its present shape in the year 2010 through the Constitution (Eighteenth Amendment) Act, 2010. Evolution of Article 243 through time has been traced and is reproduced hereunder for better understanding of the Article.

Comparative History of Article 243

1956 Constitution	1962 Constitution	1973 Constitution (Original Provision)	1973Constitution(Present Provision)
40. Supreme Command of the Armed Forces.-	17. President to have Supreme Command of the Defence Services.-	243. Command of Armed Forces.	243. Command of Armed Forces.
(1) The Supreme Command of the Armed Forces shall vest in the President, and the exercise thereof shall be regulated by law.	(1) The Supreme Command of the Defence Services of Pakistan is vested in the President, to be exercised by him subject to law.	(1) The Federal Government shall have control and command of the Armed forces.	(1) The Federal Government shall have control and command of the Armed Forces. (2) Without prejudice to the generality of the foregoing provision, the Supreme Command of the Armed Forces shall vest in the President.
(2) Until Parliament makes provision by law in that behalf the President shall have the power- (a) to raise and maintain the Naval Military and Air Forces of Pakistan and the Reserves of such Forces; (b) to grant	(2) Without limiting the generality of clauses (1) of this Article, the President has power, subject to law; (a) to raise and maintain the Defence Services of Pakistan and the Reserves of those Services; (b) to grant Commissions	(2) The President shall subject to law, have power-- - (a) to raise and maintain the Military, Naval and Air Forces of Pakistan; and the Reserves of such Forces; (b) to grant Commissions in such Forces; and	(3) The President shall subject to law have power--- (a) to raise and maintain the Military, Naval and Air Forces of Pakistan and the Reserves of such Forces; and (b) to grant Commissions in such Forces. (4) The President shall, on advice the Prime Minister, appoint- (a) the Chairman, Joint Chiefs of Staff Committee; (b) the Chief of the Army Staff; (c) The Chief of the Naval Staff; and (d)

Commissions in such Forces; and (c) to appoint Commanders-in-Chief of the Army, Navy and Air Forces and determine their salaries and allowances.	in those Services; and (c) to appoint chief commanders of those Services and determine their salaries and allowances.	(c) to appoint the Chief of the Army Staff, the Chief of the Naval Staff and the Chief of the Air Staff, and determine their salaries and allowances.	the Chief of the Air Staff, and shall also determine their salaries and allowances.
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16. Article 40 of the 1956 Constitution shows that the President was made the Supreme Commander of the Armed Forces and the said command was to be exercised by him under the law. The Article further provided that until the Parliament made law, the President would raise and maintain an Army and grant Commissions in Forces and appoint, inter alia, Commander-in-Chief of the Army. The underlying constitutional spirit gathered from the said Article is that the President was to raise and maintain an Army, to command it, to grant Commissions in it and to appoint its Commander-in-Chief under the law. It is important to note that the Pakistan Army Act, 1952 ("Act") was in force at the time of promulgation of the 1956 Constitution and despite its existence the framers of the Constitution required the Parliament to make provision by law to regulate the above matters. Article 40, thus, underlined that the Act had to provide the necessary structural underpinning that would constitute raising and maintaining of an Army, granting Commissions in the Forces and appointing its Commander-in-Chief.

17. Article 17 of the Constitution of the Republic of Pakistan, 1962 ("1962 Constitution") carried the spirit of Article 40 of the erstwhile Constitution; this time without awaiting for the legislation by the Parliament made the exercise of the President in relation to raising and maintaining the Armed Forces and granting Commissions in and appointing Chiefs of, such Forces, subject to law. No changes had been made in the Pakistan Army Act, 1952 since 1956 till 1962, therefore, the Act remained devoid of these constitutional structural requirements, in as much as, no provisions were added therein as to command of the Armed Forces by the President as the Supreme Commander, the powers to be exercised by him to raise and maintain an Army, to grant Commissions in the Forces and to make appointment of the "Chief Commander." This constitutional mandate was not actualized in law by the Legislature and the Government of the time, and remains unrealized even today.

18. This brings us to the present Constitution of 1973. The unrealized constitutional mandate once again is repeated in Article 243 with the same vigour and flair as it was done in the Constitutions of 1956 and 1962. Clauses (1) and (2) of Article 243 of the Constitution provide that the Federal Government shall command and control the Armed Forces and the President shall be its Supreme

Commander. Clause (3) Article 243 of the Constitution provides that the President shall subject to law raise and maintain the Military, Naval and Air Forces of Pakistan and the Reserves of such Forces and grant Commissions in the Forces. Integral and intrinsic to raising and maintaining an Army is to first provide for the post of Commander in Chief of the Army, the General Officers and other Commissioned Officers that stand behind him and constitute the body of the valiant Army. No Army can be visualized without its gallant commanders. Once the structure including terms of service and tenure of the General Officers is put in place under the law envisaged by the Constitution, the role of the President to appoint the Chief of the Army Staff, under clause (4) of Article 243, from amongst the General Officers, on the advice of the Prime Minister is then simply a matter of selecting the most appropriate and suitable General officer to act as COAS. The power to appoint COAS under Article 243(4) is, therefore, not an exercise in isolation but stands rooted and connected to the Army raised and maintained under Article 243(3) of the Constitution.

19. Review of the Military Laws of other countries shows that the law must provide for essential structural areas that would pass for raising and maintaining an Army. A comparative chart of the Laws of the Armed Forces of different countries is given hereunder:

Constituents of raising and maintaining Armed Forces

Structural Areas	United States (10 U.S. Code Title Armed Forces).	Australia (Defence Act 1903)	Canada (National Defence Act 1985)	Singapore (Armed Forces Act 1972)	Malaysia (Armed Forces Act, 1972)	New Zealand (Defence Act, 1990).
Organization Control and Administration	Organization and General Military Powers	Control and administration (Part II)	Canadian Forces Organization (Part II)	Organization of Singapore Armed Forces (Part II)	The Regular Forces of Malaysia (Part II)	New Zealand defence Part II
Appointment, Resignation Termination, Remuneration Superannuation and other Terms and Conditions.	Personnel	Appointment Resignation, Termination Remuneration Superannuation	Enrolment, Promotion, Service, Pay (Part II)	Appointments Pay. Pension, Terms and Conditions, Remuneration (Ss.10-10C, 192-197,202-208).	Appointment of Officers of The Regular Forces and Terms of Service (Parts III, IV and VI).	Appointment of Chiefs, Terms and Conditions of Service in Armed Forces and Superannuation (Part 3-5)

Military Offences	Punitive Matters (Subchapter VIII)	Offences and Offences in relation to service tribunl (Parts VII-VIII)	Service Offences and Punishments in fraction (Part III Dv2).	Military Offences (Part III)	Service Offences and Punishments (Part V)	Offence punishable by Civil Courts (Part VII)
Trial by Subordinate Military Courts	Uniform Code of Military Justice (Chapter 47).	Defence Force Discipline Act, 1982.	Trial by Court Martial and Civil Court (Part-III Dv6, Part-VII)	Trial by Subordinate Military Courts (Part V).	Offences relating to the Armed Forces punishable by Civil Courts (Part VII)	Redress of complaints (Sec.49) and Armed Forces Discipline Act, 1971
Punishments of Military Offences	Punitive Articles (Subchapter X) and Sentences (Subchapter VI)	Penalty (Part VII Sec.73-F)	Service Offences and Punishments in fraction (Part-III Dv2).	Punishments of Military Offences and Execution of Sentences (Part VI).	Service Offences and Punishments (Part V)	Members may be discharged or released for incompatible behaviour and disciplinary proceedings (57 and 57A).
Court of Appeal	Uniform Code of Military Justice (Chapter 47)	Defence Honors and Awards Appeals Tribunal (Part VIIC)	Grievances (Right of Appeal) (Part -II Dv9).	Military Court of Appeal (Part VII)	Offences relating to the Armed Forces punishable by Civil Courts (Part VII)	Court Martial Appeals Act 1953 and Armed Forces Discipline Act 1971.

Training and Development	Training and Education (\$\$)	Australian Defence Force Cadets (Part V)	The Governor in Council make regulations for the training and discipline of Armed Forces (Sec 12 (1)).	General Orders of Ministry of Defence (Sec 208 d)	Training and attachment (Sections 191, 201 and 201B).	Cadet Forces (Part VI).
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20. The above mentioned laws provide the essential structural areas that constitute raising and maintaining an Army. The key structural areas include Organization; Control; Personnel; Terms and Conditions of services of officers of the Armed Forces including Appointments, Ranks, Remuneration, Promotion, Resignation, Termination, Superannuation, Command, Rank; Discipline, Administration, Training and Development, Education and Offences. The United States Law of Armed Forces also provides for Procurement, Supply and Acquisitions for the Armed Forces. The above laws strongly underline that the officers, who are to command and control the Army, unquestionably form an essential component of the Army and must, therefore, be explicitly recognized under the law.

Review of the Pakistan Army Act, 1952

21. When the Pakistan Army Act, 1952 is reviewed in the context of raising and maintaining an Army, we see that it largely deals with offences, courts martial and punishments. There is no mention of the Chief of the Army Staff, the commanders of the Pakistan Army. There is no mention of the General Officers or the other Commissioned Officers or terms of their service. Only three chapters briefly touch upon definitions, appointment and termination of service. While the Act governs Commissioned Officers there is nothing in the Act that prescribes the terms and conditions of service of the said Officers. Chapter II deals with the Appointment, Enrolment and Attestation of Junior Commissioned Officers and Warrant Officers and not of Commissioned Officers, while section 18 in Chapter III, relating to Termination of Service deals with the retirement, release or discharge of persons subject to the Act. The Act is silent about key structural areas that constitute raising and maintaining an Army especially about the Commissioned Officers and their Commander-in-Chief.

22. In order to meet this structural constitutional requirement of Article 243(3) of the Constitution, it seems that a hurried effort was made and some key structural areas that are necessary for raising and maintaining an Army were inserted in section 176A of the Act in the year 1965¹¹ empowering the Federal Government to make Regulations in respect of "governance, command, discipline, recruitment, terms and conditions of service, precedence, and administration of the Pakistan Army." This slipshod legislative upload, however, does not meet the requirement of Article 243(3)

of the Constitution, without providing for core, primary and essential legislation on these structural areas by the Parliament. This aspect is discussed in detail in later part of the judgment while examining the status of the Army Regulations (Rules). For now it would suffice to observe that the Pakistan Army Act, 1952, falls deficient of the Constitutional requirement under Article 243(3) as it does not provide for essential elements required to raise and maintain an Army, in particular, the grant of Commissions in the Army and the terms of service of the Commissioned Officers. Had this been done, the questions raised before the Court today, would not have arisen.

Post of COAS - Whether Unregulated

23. The appointment to the post of COAS is made under Article 243(4)(b) of the Constitution. It would be advantageous to have a look at the history of the successive amendments in the said Article before discussing various aspects surrounding the appointment of the COAS. The trajectory of constitutional amendments made in Article 243 is given as under:-

Constitutional amendments in Article 243

(Amendments are given in bold for convenience)

1973 Original Position	After 1985 Amendment	After 1997 Amendment	After 2002 Amendment	After 2003 Amendment	After 2010 Amendment/ Substitution
(1) The Federal Government shall have control and command of the Armed Forces	(1) The Federal Government shall have control and command of the Armed Forces	(1) The Federal Government shall have control and command of the Armed Forces	(1) The Federal Government shall have control and command of the Armed Forces	(1) The Federal Government shall have control and command of the Armed Forces	(1) The Federal Government shall have control and command of the Armed Forces
	(1A) Without prejudice to the generality of the foregoing provision, the Supreme Command of the Armed Forces shall vest in the President. (This clause was added).	(1A) Without prejudice to the generality of the foregoing provision, the Supreme Command of the Armed Forces shall vest in the President.	(1A) Without prejudice to the generality of the foregoing provision, the Supreme Command of the Armed Forces shall vest in the President.	(1A) Without prejudice to the generality of the foregoing provision, the Supreme Command of the Armed Forces shall vest in the President.	(2) Without prejudice to the generality of the foregoing provision, the Supreme Command of the Armed Forces shall vest in the President. (This clause was

					renumbered as clause (2).
(2) The President shall subject to law, have power--- (a) to raise and maintain the Military, Naval and Air Forces of Pakistan; and the Reserves of such Forces; (b) to grant Commisisions in such Forces; and (c) to appoint in his discretion the Chairman, Joint Chiefs of Staff Committee, the Chief of Army Staff, the Chief of the Naval Staff and the Chief of the Air Staff and determine their salaries and allowances.	(2) The President shall subject to law, have power--- (a) to raise and maintain the Military, Naval and Air Forces of Pakistan; and the Reserves of such Forces; (b) to grant Commissions in such Forces; and (c) to appoint the Chairman Joint Chief of Staff Committee, the Chief of Army Staff, the Chief of the Naval Staff and the Chief of the Air Staff and determine their salaries and allowances. (The highlighted	(2) The President shall subject to law, have power--- (a) to raise and maintain the Military, Naval and Air Forces of Pakistan; and the Reserves of such Forces; (b) to grant Commissions in such Forces; and (c) to appoint the Chairman Joint Chief of Staff Committee, the Chief of Army Staff, the Chief of the Naval Staff and the Chief of the Air Staff and determine their salaries and allowances (Words "in his discretion" from clause	(2) The President shall subject to law, have power--- (a) to raise and maintain the Military, Naval and Air Forces of Pakistan; and the Reserves of such Forces; and (b) to grant Commissions in such Forces, Paragraph (c) of clause (2) was omitted and clause (3) was added.	(2) The President shall subject to law, have power--- (a) to raise and maintain the Military, Naval and Air Forces of Pakistan; and the Reserves of such Forces; and (b) to grant Commissions in such Forces,	(3) The President shall subject to law, have power--- (a) to raise and maintain the Military, Naval and Air Forces of Pakistan; and the Reserves of such Forces; (b) to grant Commissions in such Forces. (This clause was renumbered as clause (3).

	words were added)	2(c) were omitted).			
			(3) The President shall, in his discretion, appoint. (a) the Chairman, Joint Chiefs of Staff Committee; (b) the Chief of the Army Staff; (c) the Chief of the Naval Staff; and (d) the Chief of the Air Staff, and shall also determine their salaries and allowances.	(3) The President shall, in consultation with the Prime Minister, appoint- (a) the Chairman Joint Chiefs of Staff Committee; (b) the Chief of the Army Staff; (c) the Chief of the Naval Staff; and (d) the Chief of the Air Staff and shall also determine their salaries and allowances (In clause (3), for the words "in his discretion" the words "in consultation with the Prime Minister" were substituted.)	(4) The President shall, on advice the Prime Minister, appoint- (a) the Chairman, Joint Chiefs of Staff Committee; (b) the Chief of the Army Staff; (c) the Chief of the Naval Staff; and (d) the Chief of the Airm Staff, and shall also determine their salaries and allowances. (In clause (4), for the words "in consultation with the Prime Minister" the words "on advice of the Prime Minister" were substituted.)

24. Article 243(4), which carries a long constitutional ancestry since 1956, provided in its original form that the President shall "subject to law" appoint and determine salary and allowances of the COAS, alongwith matters of raising and maintaining Armed Forces and granting Commissions in Forces. Under the Legal Framework Order, 2002 the matter of appointment of COAS was separated and provided for under clause (3) of Article 243 which was renumbered as clause (4) in the year 2010. Post 2002, clause (3), now clause (4) of Article 243, does not contain the expression "subject to law." Relying on the current language of clause (4) of Article 243 the learned Attorney-General submitted that the post of the COAS not being "subject to law" allows appointment of even a retired General as the COAS.

25. The submission of the learned Attorney-General, if accepted, immediately gives rise to a number of questions: Who can be appointed as a COAS? Can a COAS be a serving or a retired army officer? What will be the rank of such army officer? What will be the tenure of COAS? What will be the age of his retirement? Can he be removed from service? Can he resign or step down due to personal reasons? How will the President, the Supreme Commander of the Armed Forces or the Federal Government having the command and control of the Armed Forces regulate the post of COAS? These questions are of importance for the nation and for the Armed Forces as a premier security institution of the country. It is inconceivable that the constitutional appointment to the post of the COAS in the "service of Pakistan¹²" goes unregulated under a written Constitution.

26. The interpretation put by the learned Attorney General, to the provisions of clause (4) of Article 243 is the result of reading it in isolation from the other clauses of Article 243, particularly the immediately preceding clause, i.e. clause (3), and in oblivion of the overall constitutional scheme of appointment to the constitutional posts and their tenure. It is a settled principle of interpretation that the words in a provision cannot be read and interpreted in isolation. The meaning and scope of a provision is determined by looking not to the isolated words used therein but by reading its text in context. The relevant provision of the Constitution is, therefore, to be read in its immediate context as well as in the overall scheme of the constitutional appointments.¹³

27. Clause (3) of Article 243 as elaborated earlier, contemplates raising and maintaining the Armed Forces and granting Commissions in such Forces under a law enacted by the Parliament. Such a law must provide for a cadre of commanders who will eventually head the Army. Article 243(4) simply deals with selection/ appointment of the COAS by the President on the advice of the Prime Minister. This selection/ appointment is naturally to be made from amongst the General Officers of the Army raised and maintained under Article 243(3) and is solely the prerogative of the President on the advice of the Prime Minister which cannot be curtailed by law. Both clauses (3) and (4) of Article 243 work in tandem, without disturbing each others powers. Therefore, separation by the Legal Framework Order 2002 of clause (4) from that of clause (3) and omission of the expression "subject to law" in clause (4) has only given more autonomy to the Prime Minister, the head of the Executive branch, in selection and appointment of a General Officer as a COAS. The removal of the term "subject to law" does in no manner lessen the importance of Article 243(3), which envisages that the terms of service of the General Officers should be provided under the law.

28. A look at the scheme of the Constitution shows that the President in whom the Supreme Command of the Armed Forces vests, has a fixed tenure under the Constitution.¹⁴ The Prime Minister, on whose advice the COAS is appointed, being a Member of the National Assembly, has also a fixed term under the Constitution. A survey of the constitutional appointments to be made by the President is given as under:

Constitutional Appointments

Article	Constitutional Office	Article	Tenure or Age of Retirement
92(1)	Federal Ministers and Minister of State	92(3)	May be removed from office at anytime on the advice of the Prime Minister (Not a Service of Pakistan-Article 260)
93(1)	Advisors	93(1)	The terms and conditions of appointment are determined by the President, on the advice of the Prime Minister. (Not a Service of Pakistan-Article 260)
100(1)	Attorney-General for Pakistan	100(2)	Holds office during the pleasure of the President.

			(Not a Service of Pakistan- Article 260)
92(1)	Federal Ministers and Minister of State	92(3)	May be removed from office at anytime on the advice of the Prime Minister (Not a Service of Pakistan- Article 260)
101(1)	Governors of Provinces	101(3)	Hold offices during the pleasure of the President.
168(1)	Auditor General of	168(3)	4 years tenure, or age of 65 years
177(1)	Chief Justice of Pakistan	179	No tenure or age of retirement Connected with the Judge of the Supreme Court who holds office till age of 65 years.
177(1)	Judges of the Supreme Court	179	Hold offices till age of 65 years
193	Chief Justices of High Courts	195	No tenure or age of

			retirement Connected with the Judge of the High Court who holds office till the age of 62 years.
193	Judges of High Courts	195	Hold offices till age of 62 years
203C(2)	Chief Justice Federal Shariat Court	203C(4)	Tenure not exceeding 3 years; and may be appointed for further term(s)
203C(2)	Judges of Federal Shariat Court	203C(4)	Tenure not exceeding 3 years; and may be appointed for further term(s)
203F	Judges of Supreme Court Shariat Appellate Bench	203F(4)	Holds office for such period as the President may determine
213(1)	Chief Election Commissioner	215(1)	5 years tenure
218(2)(b)	Members of Election Commission	215(1)	5 years tenure
228(2)	Members of Council of	228(5)	3 years tenure

	Islamic Ideology		
228(4)	Chairman, Council of Islamic Ideology	228(5)	No tenure. But same as that of a Member, i.e., 3 years under Article 228(5).
242(1A)	Chairman of Public Service Commission		No tenure or age of retirement. Terms of service of a Member applicable. Section 4(1) of the FBSC Ordinance, 1977 provides a tenure of three years or an age of 65 years, whichever is earlier of a Member the Commission.
243(4)	Chairman, Joint Chiefs of Staff Committee; and Chiefs of Armed Forces		No tenure prescribed in the Constitution and the law relating to the Armed Forces.

The above provisions of the Constitution provide for the following constitutional positions as to tenure or age of retirement: (i) posts with specific tenure or age of retirement in the Constitution,

(ii) posts with no specific tenure or age of retirement but are regulated at the pleasure of the President, and (iii) posts with no specific tenure or age of retirement but are regulated with the tenure or age of retirement of the persons so appointed to the posts. A quick reference can be made to the appointment of Chief Justice of the Supreme Court or of a High Court, which is an appointment without a tenure or age of retirement. This falls in the third category. Chief Justice of the Supreme Court or of a High Court is appointed from amongst the Judges of these Courts and it is the age of retirement of these Judges, under the Constitution, that regulates the age of retirement of the Chief Justices. Therefore, if a Judge of Supreme Court retires at 65 years of age, so does the Chief Justice of Pakistan. Similarly, the Chairman of the Council of Islamic Ideology has no tenure or age of retirement under the Constitution. However, as the Chairman of the Council is appointed from amongst the Members of the Council, it is his tenure as a Member that regulates his tenure in the post of Chairman. Another example is of the tenure of the Chairman of the Public Service Commission, who is not provided under Article 242(1A). However, being a Member¹⁵ of the Public Service Commission his tenure and age of retirement stand regulated under section 4(1) of the Federal Public Service Commission Ordinance, 1997 which determines tenure and age of retirement of a Member.

29. Army Regulations (Rules) 125 read with Annex D shows that an officer of the Army holding the rank of a "General" is appointed as a COAS. This is also an admitted position according to the submissions made by the Attorney-General besides being visible from the appointment notifications of the earlier and the present COAS, placed on the record. The appointment notifications provide that a Lieutenant-General is first promoted to the rank of a General and then appointed to the post of COAS. It is for this reason that the Federal Government in the Summaries and notifications, referred to above, have taken pains to extend the tenure of General Bajwa for a period of three years either through extension in service or limiting his retirement in order to make him available for re-appointment to the post of COAS. Therefore, the substantive rank of the army officer who is posted as a COAS is that of a General, which in turn then regulates the tenure, as well as, the other terms of service of the COAS. This puts to rest the impression that the post of COAS is without any tenure under Article 243(4)(b). Thus, the constitutional appointment of COAS, like similar constitutional appointments, stands regulated and falls in line with the constitutional scheme. It is important to underline that it is only a serving General who can be appointed as the COAS. This is because only a serving army officer is subject to the Pakistan Army Act, 1952.¹⁶ A retired army officer has no terms of service and is not regulated under the Act. Therefore, the terms of service of the rank of the General appointed as COAS regulates the tenure and terms of service of the COAS, other than his salary and allowances which are to be determined by the President under Article 243(4) of the Constitution.

Tenure or Age of Retirement of a General

30. We have examined the laws relating the Pakistan Army to determine the terms of service of a General, in particular his tenure and age of retirement. The Pakistan Army Act, 1952 and the Pakistan Army Act Rules, 1954 are totally silent about the tenure or age of retirement of a General. Section 18 of the Act states that the prescribed Authority may, in conformity with such rules as may be prescribed in this behalf, retire, release, or discharge from the service any person subject

to this Act. While Rule 12 of the Rules provides that the retirement or release of an officer shall be authorized by the Federal Government and notified in the official Gazette. Both these provisions do not provide the age of retirement or tenure of army officers including a General.

31. The Army Regulations, however, contain the provisions regarding the retirement of the army officers. Regulations 262, 262-A and 262-C deal with normal retirement of officers. Regulation 262 deals with normal retirement of officers who were on the Effective List¹⁷ on 1.07.1970 (commissioned prior to 1970) and provides their retirement age and service limit including that of a General as follows:

Rank	Age (yrs)	Service
(a) Major and below	47	23
(b) Lieut-Colonel	50	25
(c) Colonels	53	26
(d) Brigadiers	55	28
(e) Major Generals	57	30
(f) Lieut-Generals	58	32
(g) Generals	60	35

Regulation 262-A deals with officers commissioned after 1970 which includes the incumbent COAS, while Regulation 262-C deals with the officers commissioned after 1988. Regulation 262-A, which is applicable to General Bajwa, does not provide for age of retirement for the officer of the rank of a General as seen from the relevant provision reproduced hereunder:

Rank	Age Limit
(a) Major and below	48
(b) Lieut-Colonel	50
(c) Colonel	52
(d) Brigadier	53
(e) Major General	55
(f) Lieut-General	57 years or on completion of one tenure of four years whichever is earlier. However, an officer may be retained in service as a special case by the Federal Government for an extra year on completion of his tenure of four years.

32. The laws relating to the Army discussed above do not provide for the tenure or age of retirement of a General. The learned Attorney-General has also conceded this legal deficiency and submitted that the tenure of a General, at present, is being regulated by the institutional convention

and practice. As per the said practice, he submitted, the tenure of a General and consequentially of a COAS is three years. This institutional practice pleaded by the Attorney-General is discussed in detail in the later part of the judgment. It would suffice here to observe that such an institutional practice cannot be a valid substitute of the law required to be made in pursuance of the constitutional mandate under Article 243(3) of the Constitution. This is a serious legislative omission. Service in the Armed Forces being "Service of Pakistan" must be regulated by or under the law in accordance with the provisions of Article 240 of the Constitution read with Article 243(3). Otherwise, it is inconceivable that the highest rank in the Army, would have no tenure or age of retirement or other terms of service.

Extension in service and limit in retirement of a General

33. The re-appointment, extension or fresh appointment of General Bajwa as COAS has been structured by the Federal Government by first limiting the retirement of the General under Regulation 255 for three years and then appointing him as COAS for another term under Article 243(4) of the Constitution. During the course of hearing of this case, the said Regulation was amended overnight by the Federal Government on 26.11.2019 to include the expression "extension" in limiting retirement. In the absence of a tenure or age of retirement for the rank of a General under the law, this exercise to amend the Regulation 255 did not serve any purpose.

Scope and Meaning of Army Regulation (Rules) 255

34. The above Regulation has been provided in the Chapter dealing with Termination of Service of Army Regulations (Rules) and bears the heading Retirement and Resignation. This Regulation can only be invoked for an officer who has retired or is about to retire. The emphasis is to delay the retirement either by limiting the retirement or by extending the date of retirement or suspending retirement after retirement. This is a temporary arrangement and can only be availed if the exigencies of service and public interest so require. The essence of the Regulation is that if an officer is on the way out (about to retire) and urgent or pressing circumstances require that he be retained in service, this Regulation comes into play. An example could be that during war, an army officer may not be allowed to leave the war front just because he is about to retire or has retired, in such a situation the retirement can be limited, extended or suspended. This is in line with Regulation 255A. The exercise of discretion by the Federal Government under the said Regulation has to be structured on parameters of exigency of service with a corresponding temporary period in mind. The words suspension, limiting retirement and extension do not connote permanency and cannot be equated with grant of new tenure or a fresh appointment. Therefore, a new tenure or fresh appointment for a full new tenure cannot be given or granted to an army officer under Army Regulation (Rules) 255.

Status of Regulations 255

35. Reading of Regulation 255 in the light of the relevant provisions of the Act and the Rules has given rise to some serious doubts as to the vires of its provisions which we would like to highlight in the public interest so that the Federal Government when initiates a legislative process on the subject, may take it also into consideration. Section 18 of the Act provides as under:

18. Retirement, release or discharge.-- The prescribed Authority may, in conformity with such rules as may be prescribed in this behalf, retire, release, or discharge from the service any person subject to this Act.

Section 176(2)(a) empowers the Federal Government to make Rules on the subject of "retirement" and as a consequence Rule 12 of the Pakistan Army Act Rules, 1965 provide as follows:

12. Authorities empowered to authorize retirement, release or discharge.--(a) The retirement or release of an officer shall be authorized by the Federal Government and notified in the official Gazette. The Federal Government may at any time terminate the services of an officer.

36. Army Regulation (Rules) 255 appears in Chapter XI of the Regulations dealing with Termination of Service under the head Retirement and Resignation. Regulation 255, prior to the recent amendment, provided as follows:

Retirement and Resignation

255. General Provision:- Retirement of officers will always be subject to the exigencies of service. Full power is reserved to the Federal Government temporarily or limit retirement, in general or in individual cases wherever it may be necessary to do so in public interest. Officer of the rank of Colonel and above will not be permitted to retire voluntarily unless deemed expedient by the Federal Government.

The above Regulation was amended in one day on 26.11.2019 during the pendency of this case. This was done when the Court asked the Attorney-General to show if there was any provision of the law dealing with "extension" of the tenure of a General or COAS. The amended Regulation is as follows:

Retirement and Resignation

255. General Provision:- Notwithstanding anything contained in the Army Regulations, Volume-I (Rules), 1998, the Federal Government shall have the power to suspend temporarily or limit retirement, the latter including the grant of extension in the service of any officer, in general or in individual cases, during the currency of tenure or upon reaching retirement, wherever it is necessary to do so in any exigency or in the public interest. Officer of the rank of Colonel and above will not be permitted to retire voluntarily unless deemed expedient by the Federal Government

37. Section 176A of the Act clearly provides that the Federal Government shall make Regulations for all or any of the purposes of the Act but other than those in respect of which Rules have been made under section 176. Rule 12 specifically covers the subject of "retirement"; therefore, Regulations could not deal with the subject of retirement. While the Act and the Rules mention simple retirement, the Regulation introduces a totally new concept of suspending, limiting in and extending retirement, which apparently exceeds the mandate of the Act.

Status of Section 176A of the Act and the Army Regulations

38. The examination of Regulation 255 has lead us to examine the history and constitutionality of section 176A of the Act and the vires of the Army Regulations as a whole. Before Independence, Army of the British India was governed by the Indian Army Act, 1911. After 1947, the Pakistan Army continued to be governed by the said Act by virtue of section 18 of the Indian Independence

Act, 1947. The Act of 1911 was repealed and replaced by the Pakistan Army Act, 1952. We could not trace the history of Army Regulations (Rules) and their legislative authority before 1960 or 1965 when they are said to have been made under section 176A of the Act. The Regulations were in existence even in 1945 but did not have a legislative cover under the Indian Army Act, 1911 as there was no provision under the said Act to make the Regulations. India resolved this anomaly by adding sections 192, 193 and 193A in the Indian Army Act, 1950; and Pakistan did this in the year 1965 by adding section 176A to the Pakistan Army Act, 1952.

Essential Legislative Function - Excessive Delegation

39. In order to provide a legal cover to the Army Regulations, section 176A was inserted in the Act vide the Pakistan Army (Amendment) Ordinance, 1965 (Act XV of 1965) which empowered the Federal Government to make Regulations in the following manner:

176A. Power to make regulations. The Federal Government may make regulations for the governance, command, discipline, recruitment, terms and conditions of service, rank, precedence, and administration of the Pakistan Army and generally for all or any of the purposes of this Act, other than those in respect of which rules have been made under section 176. (emphasis supplied)

It is useful to refer to the debates¹⁸ in the National Assembly when Section 176-A was introduced through the Pakistan Army (Amendment) Ordinance, 1965. Dr. Aleem Al-Razi, the then Member of the National Assembly pointed out as follows:

"Thirdly, the last clause in section 176 of the Act is absolutely unnecessary. It takes away the entire thing from the purview of this Legislature to the Executive Government alone who will be determining the factors whom to be given precedence and whom to be given a new title or new favour this is absolutely in the hand of the Central Government. Under the previous rules, under section 176 of the Pakistan Army Ordinance, 1952, Mr. Speaker, the wording of that section are not so quiet but unfortunately by adding new section 176-A a comprehensive power we are giving to the Executive Government and we shall not know anything. Even there is no provision of publication of those rules and regulations in the official Gazette of Pakistan. So, Mr. Speaker, Sir, may I ask the Members of the Treasury Benches that they may publish these rules and regulations in the Official Gazette and if necessary produce those rules and regulations on the floor of the House if not for approval may be for our reading, for our understanding so that we may know the fate of our Army, we may know the rules and regulations by which our Armed Forces are governed so that we may also go in the Armed Forces of Pakistan." (emphasis supplied)

Mr. Muhammed Qasim Malik, the then Parliamentary Secretary to the Defence Division, who tabled the Ordinance for approval by the Assembly under clause (3) of Article 29 of the Constitution, 1962 pointed out as under:

"... This is actually to legalize the Pakistan Army Regulations which are already in existence. But unfortunately it was found later on that they had no legal force under the Army Act. Under the Army Act, Army regulations can be made and they already exist and there is a great necessity of these Regulations. Therefore, this Ordinance had to be brought in. The main purpose is to legalize this and to give a certain legal force behind those

regulations because they could not be framed unless and until this Ordinance was passed or this Resolution is passed "

40. The debates are self-explanatory and set out the purpose of inserting section 176A in the Act. It can be safely maintained that the said Regulations existing from the time of the British India were promulgated as statutory Regulations by the Federal Government under section 176A of the Act after 1965. The only problem is that these Regulations once brought within the statutory fold must flow from the Act. Regulations which do not meet this requirement would be ultra vires the Act. The scope of the Act or the vires of the Regulations cannot be determined by the words inserted in section 176A like governance, command, discipline, recruitment, terms and conditions of service, rank, precedence and administration of the Pakistan Army. These words are mere words when there is no essential or core legislation on these subjects. Article 142(a) of the Constitution provides that the Parliament shall have exclusive power to make laws with respect to any matter in the Federal Legislative List. Item No. 1 of the said List provides for Military, Naval and Air Forces raised and maintained by the Federation. However, no such legislation was ever made since it was first clearly mandated under the 1956 Constitution. Section 176-A inserted in 1965 provided a shortcut and authorized the Federal Government to regulate areas like governance, command, discipline, recruitment, terms and conditions of service, rank, precedence and administration of the Pakistan Army through Regulations. The power of the Parliament under the Constitution cannot be delegated to the Federal Government without the Parliament performing the basic essential legislative function, i.e. providing policy guidelines on these areas.

41. This Court has time and again held that the essential legislative function of the Parliament cannot be delegated.¹⁹ The wisdom behind it is that the delegatee must have legislative guidelines to formulate Rules and Regulations, and that guidelines, contours or boundaries must come from the Legislature itself. Delegation of an "essential legislative function" by the Legislature to the Executive is not permissible under the Constitution. The foundation of embargo owes its genesis to the concept of trichotomy of powers between the Legislature, the Executive and the Judicature, which is a fundamental principle of our constitutional construct. Under the Constitution, these three organs of the State have been entrusted with separate and specified functions. The primary function of the Legislature is to legislate laws, of the Executive to execute laws, and of the Judicature to interpret laws.²⁰ The words of Chief Justice Marshall of the US Supreme Court frequently quoted, in explaining the doctrine of separation of powers, by the Courts of various jurisdictions in the last about two centuries still hold: "the Legislature makes, the Executive executes, and the Judiciary construes, the law." The Legislature cannot abdicate performance of the function assigned to it by the Constitution and set up a parallel Legislative authority. Though the Legislature can confer upon any person or body the power to make subordinate/delegated legislation (rules, regulations or byelaws, etc) in order to give effect to the law enacted by it yet it must perform itself the essential legislative function, i.e. to exercise its own judgment on vital matters of policy and enact the general principles providing guidance for making the delegated legislation. Through section 176A, the Parliament appears to have divested itself of the essential legislative function which amounts to excessive delegation.

42. The Army Regulations (Rules) will be rendered ultra vires if they do not draw their power from the parent Act, i.e. the Pakistan Army Act, 1952 and will suffer from excessive delegation if they draw their strength only from section 176A of the Act. The Regulations have to be fully examined in the light of these principles. Once again it is for the Federal Government to bring about appropriate legislation to remove these defects so that the Regulations have a proper legal cover and are fully enforceable under the law.

Accessibility of Regulations

43. The copy of the Army Regulations (Rules) carries a stamp of "Restriction" stating as follows:

RESTRICTED The information given in this document is not to be communicated either directly or indirectly, to the press or to any person not authorized to receive it.

Acts of the Parliament or subordinate legislation are public documents and must be readily available to the citizen of the country subject to the exceptions provided under the Right of Access to Information Act, 2017. Those exceptions extend only to record relating to defence forces, defence installations or connected therewith and ancillary to defence and national security,²¹ and not to the Army Laws. It is important to remember that when there is information, there is enlightenment and when there is debate, there are solutions.²² Had the Army Regulations been made accessible to public and had these matters been discussed earlier, the omissions pointed out for the first time since 1947 could have been remedied much earlier. Therefore, every legislative instrument must be made accessible to public.

Legal Vacuum and the Assurance by the Federal Government

44. After detailed examination of the laws relating to the Army it is concluded that there is no provision providing for the tenure and age of retirement of a General and as a consequence of the COAS, as well as, for the extension of tenure or fresh appointment for another tenure. The Summaries initiated by the Ministry of Defence and approved by the President, the Prime Minister and the Cabinet, for the reappointment, extension and fresh appointment of the COAS seems to be meaningless and of no consequence in the said legal vacuum. The learned Attorney-General has assured the Court that the Federal Government will carry out legislation through the Parliament in the shape of an Act within six months to provide for the terms of service of a General (and as a consequence of COAS) so that effect can be given to Article 243 in letter and spirit and functionality of the constitutional provisions be realized at the earliest. Even otherwise, this Court could have directed²³ the Federal Government to initiate and process legislation to give effect to a constitutional mandate. The Federal Government may also, if deems appropriate, specifically provide for extension of the tenure of an army officer of the rank of a General in the Act with grounds for granting such an extension, so that the discretion of the Federal Government in granting extension to a General is structured. It may also carry out necessary amendments in the law to protect the Army Regulations (Rules) as discussed above, which appear to be without any legal cover and fall outside the scope of the Pakistan Army Act, 1952.

Institutional Practice

45. When confronted with the legal vacuum regarding the tenure, age of retirement and other terms of service of a General, the learned Attorney-General candidly responded that there is an unwritten institutional practice in vogue since long whereby the tenure of a General is considered to be of three years. He admitted that no tenure or age of retirement of a General has been provided under the law. Perusal of the earlier notifications placed before us relating to the former Chiefs of Army Staff and the process of reappointment, extension and fresh appointment of the incumbent, pre-suppose a fixed tenure of three years for a General/COAS. An institutional practice followed continuously and consistently by an institution for a considerable period of time may be used to resolve a controversy, in the absence of the law.²⁴ We can, therefore, place reliance on the institutional practice in order to ensure realization of the constitutional scheme under which it is inconceivable for a constitutional post in the service of Pakistan to be left totally unregulated and to continue forever. We are, however, of the view that, in the first instance, this matter should be allowed to be regulated by law as mandated by the Constitution, so that the people of Pakistan decide through their chosen representatives the length of tenure of a General, as this will consequentially determine the tenure of the COAS. The people of Pakistan may accept or reject the institutional practice through their chosen representatives in the Parliament. Besides, the question before us is not only regarding the tenure but also regarding the extension of tenure for another term, which in any case, requires legislation. The Attorney-General has assured us that necessary legislation will be brought into effect within six months to plug this legal vacuum. This assurance has tempted us to exercise judicial restraint in the matter, so that people of Pakistan may decide this question through the Parliament.

Judicial Restraint

46. Judicial restraint in its substantial approach urges Judges considering constitutional questions to give deference to the views of the elected branches and invalidate their actions only when constitutional limits have clearly been violated;²⁵ while the principle, "if it is not necessary to decide more, it is necessary not to decide more"²⁶ well states the procedural aspect of judicial restraint. The power of judicial review is a "great weapon in the hands of Judges", but the Judges must observe the Constitutional limits set by our parliamentary system on their exercise of this beneficial power, namely, the separation of powers between the Parliament, the Executive and the Courts. Judicial review must, therefore, remain strictly judicial and in its exercise Judges must take care not to intrude upon the domain of the other branches of Government. Judicial restraint, in this perspective, is essential to the continuance of rule of law, and for the continued public confidence in the political impartiality of the judiciary and the voluntary respect for the law as laid down and applied by the Courts.²⁷

47. Separation of powers is a cornerstone of a constitutional democracy and we do not wish to encroach upon the domain of the legislature. This Court has, therefore, in many cases, exercised judicial restraint in deference to the principle of trichotomy of powers and given the other branches of Government a fair opportunity to fulfill their constitutional mandate before making a final verdict on the disputed matters. The cases of Sindh High Court Bar Association²⁸, Sharaf Faridi²⁹ and Nadeem Ahmad³⁰ may be cited with advantage. We, therefore, exercise judicial restraint and give an opportunity to the Federal Government in the light of the assurance of the

Attorney-General to carry out appropriate legislation through an Act of Parliament within a period of six months.

Continuity of Incumbent COAS for Six Months

48. In this state of legal vacuum regarding the tenure of a COAS and in the light of the assurance given by the Federal Government to address these issues through fresh legislation within six months, we considering that the COAS is the commanding officer of the Pakistan Army³¹ and is responsible for the command, discipline, training, administration, organization and preparedness for war of the Army ³² and in order to preserve smooth functioning of the Pakistan Army, find it appropriate to allow the current status of the COAS to continue for a period of six months, whereafter the new legislation (Act of the Parliament) shall determine his tenure and other terms of his service.

49. This exercise of judicial restraint may not be mixed up or confused with the infamous and unpopular application of the doctrine of necessity, which amounts to going against the law of the land to attend to some political or other goal. This is not so in the present case where there is no law; in fact, there is a total legal vacuum regarding the tenure of a General. It is also instructive to refer to the spirit of Article 203D of the Constitution whereunder the Court can direct the Federal Government to initiate process for making appropriate legislative amendments in the relevant law and can grant reasonable time for doing the needful.

Summary of Findings of the Court

50. In our endeavour to address the legal questions raised in this case, we have explored the scope of Article 243 of the Constitution, reviewed the Pakistan Army Act, 1952, the Pakistan Army Act Rules, 1954, and the Army Regulations (Rules) and have found:

- 1) That the Pakistan Army Act, 1952 falls deficient of the structural requirements for raising and maintaining an Army under clause (3) of Article 243 of the Constitution. It does not provide for essential elements required to raise and maintain an Army, particularly the grant of Commissions in the Army and the terms of service of the Commissioned Officers including tenure and extension of a General.
- 2) That the terms of service of the rank of General regulates the tenure and other terms of service (except salary and allowances) of the post of the COAS. The salary and allowances of the COAS are to be determined by the President under clause (4) of Article 243 of the Constitution.
- 3) That no tenure or age of retirement for the rank of General is provided under the law. As per the institutional practice a General retires on completion of a tenure of three years. Although an institutional practice cannot be a valid substitute of the law required to be made under clause (3) of Article 243 yet in the absence of such law the said practice can be enforced to remove uncertainty as to the tenure of a General and to make the constitutional post of COAS functional. However, in the first instance, the matter should be allowed to be regulated by law, made by the legislature, as mandated by the Constitution.
- 4) That there is no provision in the law for extending service of a General for another tenure; nor is there any consistent and continuous institutional practice of granting such extension, which could be enforced in absence of the law on the subject.

5) That the Summaries of the Ministry of Defence approved by the President, the Prime Minister and the Cabinet for the reappointment, extension and fresh appointment of General Bajwa seem to be meaningless and of no consequence, in absence of the law prescribing tenure of a General and providing extension for another tenure.

6) That Regulation 255 of the Army Regulations (Rules), in its original as well as amended form, does not confer authority on the Federal Government to grant extension of another full tenure to a General. This Regulation provides for only a temporary arrangement for a short term, if the exigencies of service so requires in the public interest.

7) That Regulation 255 and other Regulations of the Army Regulations (Rules) on the subject of "retirement" appear to be ultra vires the Pakistan Army Act, as Section 176 of the Pakistan Army Act has assigned the subject of "retirement" to be regulated under the Rules and not under the Regulations. The Regulations can be made only for the matters other than those which are to be dealt with under the Rules.

8) That Section 176A of the Pakistan Army Act and the Regulations made under it appear to suffer from the excessive delegation of the essential legislative function, as neither that section nor any other section of the Pakistan Army Act provides the essential legislative policy guidelines for making the delegated legislation, viz. the Regulations, on the subjects mentioned therein.

9) That in view of the assurance of the Attorney-General given on behalf of the Federal Government to process the legislation for meeting the deficiencies in the Pakistan Army Act, in particular, the tenure, age of retirement and if deemed proper, the extension of tenure of a General, it is appropriate to leave the matter, at the first instance, to be decided by the chosen representative of the people of Pakistan by making an appropriate legislation.

10) That in view of the legal vacuum regarding tenure and extension of a General and the assurance given by the Attorney-General to process legislation on the subject within six months, and also considering the importance of the responsibilities of the COAS regarding administration and organization of the Army, it is appropriate that the incumbent COAS may continue for a period of six months, in order to preserve continuity of the institution.

51. These are the detailed reasons of our short order dated 28.11.2019 whereby the instant petition was disposed of in the following terms:

"The learned Attorney-General has categorically assured the Court that this practice being followed is to be codified under the law and undertakes that the Federal Government shall initiate the process to carry out the necessary legislation in this regard and seeks a period of six months for getting the needful done. Considering that the COAS is responsible for the command, discipline, training, administration, organization and preparedness for war of the Army and is the Chief Executive in General Headquarters, we, while exercising judicial restraint, find it appropriate to leave the matter to the Parliament and the Federal Government to clearly specify the terms and conditions of service of the COAS through an Act of Parliament and to clarify the scope of Article 243 of the Constitution in this regard. Therefore, the current appointment of General Qamar Javed Bajwa as COAS shall be subject to the said legislation and shall continue for a period of six months from today,

whereafter the new legislation shall determine his tenure and other terms and conditions of service."

52. It is, however, clarified that in case the federal Government remains unable to regulate the tenure and terms of service of a General and as a consequence of the COAS through an appropriate legislation by the Parliament as assured by the Attorney-General, within a period of six months, the tenure of the constitutional post of COAS could not be left totally unregulated and to continue forever. This would be inconceivable and amount to a constitutional absurdity. Therefore, in case of such failure of the Federal Government the institutional practice of retirement of a General on completion of the tenure of three years as pleaded by the Attorney-General and borne out from the record, shall stand enforced to regulate the tenure of General Bajwa and consequentially his tenure as COAS, from the date of his promotion to the rank of General and appointment as COAS, i.e. 29.11.2016. And the President shall, on advice of the Prime Minister, appoint a serving General officer as the new COAS.

53. In the end, we would like to emphasise that this crucial matter of the tenure of COAS and its extension, which has a somewhat chequered history, is before the Parliament, to fix for all times to come. It is now for the people of Pakistan and their chosen representatives in the Parliament to come up with a law that will provide certainty and predictability to the post of COAS, remembering that in strengthening institutions, nations prosper.

(Sd)

(Syed Mansoor Ali Shah)

Judge

54. I agree.

(Sd)

(Mazhar Alam Khan Miankhel)

Judge

ASIF SAEED KHAN KHOSA, C J.

55. I agree with the judgment authored by my learned brother Syed Mansoor Ali Shah, J., and would like to add that in our peculiar historical context Chief of the Army Staff holds a powerful position in ways more than one. Unbridled power or position, like unstructured discretion, is dangerous. It has been a shocking revelation to us that the terms and conditions of service of Chief of the Army Staff, the tenure of his office, extension in the tenure of his office or his reappointment to that office have remained unregulated by any law so far. Clause (3) of Article 243 of the Constitution of the Islamic Republic of Pakistan, 1973 mandates that the President's power to raise and maintain the armed forces is to be "subject to law" and, thus, leaving some vital aspects relevant to the office of Chief of the Army Staff without being regulated by any law militates against the said express provision of the Constitution. In the backdrop of the last three scores and twelve years of our history I may observe with hope and optimism that framing of a law by the Parliament regulating the terms and conditions of the office of Chief of the Army Staff may go a long way in rectifying multiple historical wrongs and in asserting sovereign authority of the chosen representatives of the people besides making exercise of judicial power of the Courts all pervasive. I understand that democratic maturity of our nation has reached a stage where this Court can

proclaim that, as declared by Chief Justice Sir Edward Coke of England in the Commendam case in the year 1616 regarding the powers of King James I, "Howsoever high you may be; the law is above you".

(Sd.)

Asif Saeed Khan Khosa, CJ

MWA/J-6/S Order accordingly.

